

Block

4

MEDIA ETHICS

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UNIT 14 PRINCIPLES OF MEDIA ETHICS

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14.0 INTRODUCTION

This unit is designed to give you an overview of the ethical theories of relevance to media followed by a brief history of media ethics in different parts of the world. Thereafter, the ongoing debate on a code of conduct for television broadcasters in India is outlined. The cases discussed in this unit provide an insight into some of the contemporary discussions and debates on different facets of media ethics, the objective being to prepare you for a more detailed exposition of issues relating to truth, fairness and objectivity. This unit further seeks to condition you to appreciate concerns relating to sensitivity in reporting and the invasion of privacy, and provides a curtain-raiser to issues relating to the conflict between commercial considerations and public interest.

14.1 LEARNING OUTCOMES

After going through this unit, you should be able to:

- define media ethics and discuss theories of ethics;
- take a historical overview of evolution of media ethics;
- discuss the need for ethical conduct for media persons;
- appreciate the hardships and the opposition journalists face while doing their duty;
- analyse the impact of market forces over the media; and
- appreciate issues related to self-regulation of the media.

Activity - 1

Before you start going through this unit, try to explore the basic level of awareness of those in your locality regarding the media and its conduct. Ask the following questions to 10-15 people in your locality and note down their responses. Tabulate the data obtained and analyse the responses.

Do you think that media plays an important role in society?

Yes	No	Can't say
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Do you think that the conduct of the Indian media is by and large ethical?

Yes	No	Can't say
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Do you think the government should regulate the media?

Yes	No	Can't say
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14.2 ETHICS: CONCEPT AND THEORIES

The word 'ethics' originates from the Greek word *ethos* which means 'character'. The subject of ethics has been discussed and debated by people the world over, particularly by philosophers, for centuries. It is said that some 2500 years ago, Greek philosophers had divided their work into three broad segments: *aesthetics* or the study of beauty; *epistemology* or the study of knowledge; and *ethics* or the study of choices between good and evil, truth and falsehood, virtue and vice. Ethics is a subject that seeks to use rational and systematic principles, values and norms to determine what is good or bad, correct or incorrect, right or wrong, as far as human actions are concerned. Though used interchangeably on occasions, ethics is different from morality as the latter pertains more to conventions and customs that determine or govern behaviour and relatively less to whether the action being judged is good or bad.

The first proponent of utilitarianism as an ethical principle was Jeremy Bentham (1748–1832), the British jurist, philosopher, social reformer and political radical. He noted that 'nature has placed mankind under the governance of two sovereign masters, pain and pleasure'. Another English philosopher and political economist John Stuart Mill (1806–73), whose book *Utilitarianism* was published in 1863, argued that ethical actions are those that generate the 'greatest good for the greatest number of people'. In this sense, utilitarianism directly refuted the views espoused by Italian political philosopher Niccolo Machiavelli (1469–1527) who, in his treatise *The Prince*, argued that 'the ends justify the means'.

There are two main ethical theories which are frequently employed to determine media behaviour: **consequentialism** and **deontology**.

14.2.1 Consequentialism

The Consequentialism theory holds that the ethical value of an action should be judged on its consequences. Actions themselves lack interest value, but can be appraised by virtue of their consequences. Consequentialist theories focus only on the outcome of an action, without regard for the means, that is, how the consequences came about. Therefore, all actions should be thoroughly considered in terms of their possible outcomes, before being executed. The outcomes of an action can be evaluated from two perspectives: *ethical egoism* and *ethical altruism*.

Ethical egoism holds that actions whose consequences will benefit the agent of the action can be considered ethical. This perspective does not present a cohesive social model as such actions might harm others. Ethical altruism on the other hand holds that actions that benefit others can be considered good. One of the most popular consequentialist theories **Utilitarianism**, is based on ethical altruism perspective, which is designated to create the greatest good for the greatest number of people, is a direct inference of consequentialism. The utilitarian approach is applicable to the media as it considers the well being of the society at large and is thus commensurate with the socio-centrism of journalism.

Utilitarianism

Utilitarianism as already stated, considers ethical which is designed to create the greatest good for the greatest number. Mill who formalised the ideas of Bentham argued that an action should have positive consequences for as many people as possible. Mahatma Gandhi's concept of *Sarvodaya*, the welfare of all, resembles the utilitarian theory. However, Gandhi was keen to stress that *Sarvodaya* was not utilitarian because he felt that the utilitarian objective of satisfying as many as possible was not sufficiently an ethical model, as why should the well being of the minority be of any less value than that of the majority? Why should the welfare of certain people be sacrificed? Thus there are many arguments against consequentialism and the utilitarian theories of ethics.

14.2.2 Deontology

Deontology focuses on a person's duty as a means to determine appropriate action. Immanuel Kant, the most famous deontologist, felt that it was the intention behind an action that rendered it ethical or unethical. He argued that the only right intention was the intention to act out of duty. This duty is that which can be said to be good in all situations. He believed that 'goodwill' was the only virtue that was good without qualification. Actions done out of goodwill are done out of respect for moral law and out of duty. This is a very pertinent concept for the media as it is the media's duty to serve the public by providing information which is impartial and which promotes knowledge and reason.

Journalists have many duties, however, there is no guarantee that these will always be concordant. For an honest and sincere journalist, the duty to serve the public, the duty to protect sources and the duty of loyalty towards the employer can at sometimes be in moral and ethical juxtaposition to each other. There are no easy answers to such dilemmas. It is therefore important to be familiar with all aspects of these ethical systems to determine the most appropriate course of action. It is thus vitally important for a journalist to be aware of the implications of a report before publishing or broadcasting it.

Check Your Progress: 1

Note: 1) Use the space below for writing your answers.

2) Compare your answers with those given at the end of this unit.

Explain the following concepts in brief:

1) Utilitarianism

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14.3 WHY MEDIA ETHICS?

Social welfare is the *raison d'être* of the media. Various media of mass communications - print, radio, television, cinema and the Internet - reach out to large numbers of people, often from different sections of society and from across diverse societies. The function of the mass media — sourcing, reporting and dissemination of information is aimed at the public. The media revolves around society; it is people who provide news and it is people to whom the news is reported, hence the need for media ethics.

14.3.1 Media in the Complex Social Milieu

Individuals are complex, societies even more so, especially societies like India, that are highly heterogeneous, plural, variegated and even deeply divided. Journalists are faced with social nuances at every turn and have to come to terms with these complexities. In sourcing information while presenting news, journalists have to report on gender crimes; exploitation of the underprivileged; indulgence of the affluent; arrogance of those in positions of power and authority; natural calamities and man-made accidents; communal tensions and riots; conflicts and wars and acts of terrorism. While reporting news, explaining facts, analysing information and placing these in their historical, social, economic and political contexts, journalists have to be aware of their audience and accordingly use the language and tone considered appropriate, proper and relevant.

Media serves society by disseminating accurate information which is essential to facilitate reasoned and ethical behaviour. Knowledge is an invaluable social commodity and that is reflected in legal provisions such as the right to information, freedom of expression, speech and debate — all of which lead to the freedom of the media. Reason, which is facilitated by information and knowledge, has often been recognised by philosophers, such as Immanuel Kant, as the best means for determining ethical action. Ethics is such an important area of concern because it views humans as being inextricable from society and that social interaction should be governed by mutual consideration and respect. Journalism is concerned with promoting ethically based decision-making and behaviour.

14.3.2 Media as Social Auditor

An independent media, in its role as an auditor, has often been described as society's watchdog. Unerring, loyal, vigilant, unforgiving and ready for corrective action — these are supposed to be the qualities of a watchdog. Society needs its watchdog but journalists, as mere mortals, are sometimes prone to doubt and misguided action. At times, however, the media has let society down, and as a

result has been subjected to scrutiny and fierce criticism. Several questions related to ethics arise in journalism. A few of them are as follows:

- 1) What happens when a journalist sets her or his sights on destroying the reputation, career, and dignity of an innocent woman or man?
- 2) What happens when the media, voluble and bullying like a mob, levels unsubstantiated and false accusations against an individual or an organisation?
- 3) What is the way to ensure that journalists act in a sensitive and responsible manner when reporting on the grief-stricken?
- 4) When do journalists trade their conscience and humanity for a sensational story?

Due to such factors, need for an effective institution arises in the society to keep a watch on the wrong doings of media.

14.4 MEDIA FORM AND ITS FREEDOM

Mass media has come a long way since Johannes Guttenberg invented the printing press in Germany in 1456. At present, the media comprises a huge, diverse and variegated conglomerate of enterprises that exercise considerable influence on not just the way people talk and dress but also the way they think. The origin of the word ‘journalism’ is in the Latin word *diurnalis* meaning daily and signifying the current and timely reporting of events. But journalism has, over the centuries, been transformed into a far more complex series of endeavours, especially in a day and age when news is read and watched 24 hours, seven days a week.

14.4.1 Authoritarian Model

Historically, media has enjoyed various degrees or levels of freedom. In the years when print was the dominant medium of mass communication, the press was stringently monitored and regulated by governments. The unparalleled and unprecedented power of the press to reach and influence people was promptly recognised by governments and by those in authority. Therefore, governments wanted to utilise and harness the power of communication that the press enjoyed and this they did by enacting strict licensing laws for publications. Governments and authorities sought to control the press to ensure that they did not publish anything that would be considered vaguely derogatory to those in power, even if such information was based on empirical evidence. This was known as Authoritarian model in which government exercised control over the press.

14.4.2 Libertarian Model

Unlike the authoritarian model of controlling the media, the libertarian model believed that an independent media was an extension of a fundamental human right, the right to free expression. Libertarianism represented the beginnings of a free press, one that operated independent of state control and which emphasised the capacity of the citizenry to make informed and responsible decisions. The libertarian model was influenced by the thinking of the John Milton (1608–74) who wrote a pamphlet in England in 1644 titled *Areopagitica*. In fact it was his speech to the parliament for unlicensed printing of books. He stressed the importance of free speech as a means to create open, public debates through

which, he believed, the truth would inevitably come out. This libertarian model prevailed throughout the 18th and the 19th centuries and it radically changed the function of the press, which attempted to free itself from the shackles of government censorship.

Later trends of psychoanalysis presented some challenges to the libertarian model. Where reason had previously been lauded as a sovereign principle of human behaviour, psychoanalysts pointed out that not all human behaviour was rational.

Egalitarianism developed out of the libertarian model in response to the significant transformation of the media in the 20th century. As a philosophical line of thought, it focused on social equality and responsibility and two main ethical theories consequentialism and deontology earlier discussed.

14.4.3 Self-Regulation

Many countries have regulatory bodies and laws to govern the behaviour of media. However, rules and regulations have their limitations. Not all situations are alike and, frequently, occasions arise that require at least a careful interpretation of existing regulations to determine the best course of action. Moreover, regulations and laws, for this very reason, are not exhaustive. Specific circumstances often demand unique considerations. Self-regulation is considered the best means to guarantee appropriate behaviour, for two major reasons. First, self-regulation ensures that the media can continue to operate independently. An independent media is essential for a thriving democratic society and therefore self-regulation would be in the interest of the media as well as the state. Second, self-regulation is a voluntary act that is not imposed externally and hence, carries more credibility in the eyes of the public. Any state-sponsored regulation, even if brought with the best of intentions, can be deemed authoritarian, or even draconian, and be opposed by the media, interest groups and the public in general.

Self-regulation applies not only to media groups and organisations but also to individual journalists. It is, therefore, of fundamental importance that media practitioners nurture a strong ethical value system throughout their careers. You will read more about self regulation in Unit 3 of this Block.

A free media is often described as the cornerstone of democracy: historically, the press used to be accountable to the powers-that-be, but today those in government and politics have perhaps to be equally accountable to the media. Recently, there has been a spurt in instances of violent attacks against journalists, writers and media organisations in different parts of India. In addition it has often been criticised and viciously attacked by some politicians, bureaucrats and police personnel. Former Prime Minister Rajiv Gandhi had tried to introduce a Defamation Bill in 1988 which was withdrawn after vehement opposition from journalists. Earlier, during the Emergency period in 1975–77, the Union government, headed by Indira Gandhi, had imposed censorship on the press — a decision that was later publicly regretted by the then Information and Broadcasting Minister Vidya Charan Shukla. Many supporters and well-wishers of the former prime minister too felt that this specific move contributed considerably to the electoral defeat of her party in March 1977.

On occasions, journalists believe they have been unfairly attacked. In 1999, during the Kargil war, a reporter of the news group New Delhi Television (NDTV) was

accused of endangering the lives of Indian soldiers by using a satellite phone, an allegation she vehemently denied. These allegations resurfaced in a different form in December 2008 when the then Indian Navy chief accused a woman television reporter of behaving in an unethical manner that led to the death of three Indian soldiers, a charge that was denied by the reporter in question. Earlier, in 1989, a television journalist was accused of concocting interviews with criminals who were supposed to have rigged elections in Bihar — a charge she too denies.

Twenty-four hour television channels came under criticism for the manner in which the November 2008 terrorist attacks in Mumbai were reported. Various sections, including the Indian government, argued that the media acted in a less-than responsible manner and violated ethical norms while covering the incidents of 26–28 November 2008 thereby re-igniting the debate on regulation of television broadcasts.

Thus it is argued that over a period of time the ‘somewhat special status that the media enjoyed as the fourth pillar of democracy has been considerably diluted’. As a result public perception of media has altered and journalists are no longer seen as belonging to a profession with an element of public service in it. The ‘ignorant reporting and comments’ have taken their toll and it is now up to the media to introspect its present role and decide for its future.

Check Your Progress: 2

Note: 1) Use the space below for writing your answers.

2) Compare your answers with those given at the end of this unit.

Explain the following models in brief:

1) Authoritarian model

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2) Libertarian model

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14.5 MEDIA AND MARKET PRESSURES

The media, collectively, gets a bad name when journalists lose the trust of the public at large. Globally, and in India, concerns are frequently expressed that

given market pressures to maximise profit, the media is not really as free and independent as it purports to be. Business imperatives of increasing revenue have taken (and continue to take) their toll on editorial freedom and journalistic excellence: the demands of advertisers and the drive to increase circulation figures. At worst, the media is entirely controlled, albeit indirectly, by market pressures and, therefore, the imperative of public service has fallen by the wayside and neo-authoritarianism is the media model of the moment. At best, the media risks compromising its role as society's watchdog, becoming instead a mouthpiece serving the interest of advertisers and owners of media organisations.

Mahatma Gandhi had warned: '... just as an unchained torrent of water submerges the whole countryside and devastates crops, even so an uncontrolled pen serves but to destroy....' Former British Prime Minister Tony Blair did not cloak the expression of his disillusionment when he famously called the media 'a feral beast'. The comparison to an unruly pack of hungry animals was part of a speech delivered by Blair in June 2007 to highlight the problems of the media in today's world of 'impact' journalism. According to him, the state of the media — in particular its relationship with politics — has reached a point where corrective redress is warranted. In April 2008, the Russian Parliament urgently passed the first reading of a special law that would empower courts to shut down media houses that published stories considered libellous and/or unsubstantiated.

The move came in the wake of a tabloid story alleging that President Vladimir Putin was going to divorce his wife of twenty-five years to marry a young gymnast in her twenties. The story was picked up by media all over the world and widely publicised before it was denied by the publication, *Moskovsky Korrespondent*, itself whose owner then announced that the tabloid would be suspending publication due to financial problems. An embarrassed Putin blamed journalists who, 'with their snotty noses and erotic fantasies, prowl into others' lives'. Russia's lawmakers voted to give courts powers to close a news outlet that 'disseminates deliberately false information damaging individual honour and dignity' of public personalities.

Instead of providing information that, on occasions, not merely entertains but educates and empowers as well, media products and services have become merely vehicles to bring advertisers closer to consumers.

As for the integrity of journalists, the phenomenon of 'embedded' reporters, who travelled with American troops and stayed with them while reporting on the war in Iraq in March 2003, has raised a host of questions about the 'independence' of such reporting. In India, certain journalists have argued that by reflecting the class interests and biases of proprietors and managers of media organisations, the media has ended up becoming one of the most exclusionist institutions in Indian society.

14.6 MEDIA ETHICS IN INDIA: SOME BREACHES

Media watchers argue that instead of improving the quality of programming, competition has resulted in a 'race to the bottom', a race in which television news channels have conveniently forgotten basic ethical norms and principles of journalism, principles of fairness, truthfulness and objectivity. There have been a number of instances of Indian television channels abusing the tremendous power

enjoyed by the mass media by deploying questionable methods and tactics to gain popularity. Some such instances are discussed below:

The Gudiya Episode

One such instance relates to a young Muslim woman named Gudiya who belonged to a poor family from Meerut district in Uttar Pradesh. Her first husband, Arif, served in the Indian army and had been sent to fight in the Kargil war soon after they were married. As his family did not hear from him for five years, it was presumed that he had either been killed or was serving time as a prisoner of war in Pakistan. Gudiya then married a distant relative, Taufeeq. When she was eight months pregnant with Taufeeq's child, Arif suddenly turned up after he was released from a Pakistani prison. He wanted to return to Gudiya and was willing to accept her unborn child as his own though he was not the child's biological father. For weeks, television channels broadcast discussions and debates on Gudiya's story. Eventually, Gudiya succumbed to the pressures of various so-called experts whose views were aired on television and decided to 'remarry' her first husband. Her first child was born and she started living with Arif. She soon became pregnant for a second time, but this time her child was stillborn. She fell seriously ill, was hospitalised and then died of septicaemia on New Year's day 2006. By then, the media had almost forgotten her.

Self-immolation by Gopal Krishan Kashyap

Gopal Krishan Kashyap, a hawker who used to ply his wares on a handcart in Patiala, Punjab, set himself on fire near the city's bus terminal. The incident was witnessed by around 200 people, including policemen, and some 20 television channels filmed the act of self-immolation. The channels broadcast the gory incident that evening. Before committing suicide, Kashyap accused the mayor of the local municipal corporation and an adviser to the state chief minister of reneging on their promise to allot sheds to hawkers in the local marketplace. Kashyap had even written letters to the prime minister regarding the issue. Nobody attempted to prevent Kashyap from killing himself. After he died, the cause for which he committed suicide was ignored by the media.

The Case of a School Teacher

In 2007, a Delhi school teacher was duped by a television journalist who conducted a sting operation on her using a hidden camera and claimed that she was luring her students into commercial sex work. The episode highlighted the excesses committed by a small section of the mass media. The incident resulted in the teacher having to spend time behind bars after she was sacked from her job. She was publicly humiliated by an irate mob. The journalist was subsequently arrested. It transpired that he had made an unsuccessful attempt to have the story broadcast by a different television channel where he used to work as an intern. Thereafter, he pilfered the tape and moved to a new television channel that aired the story without verifying the tapes.

Media's love for borewells

In what could be categorised as an example of media's role in 'making news' rather than 'reporting news', in the wake of the onslaught of 24×7 news-channels, the case of Prince, the five-year-old boy who accidentally fell into an open borewell while playing with his friends on 23 July 2006 can be cited. Television channels beamed the live coverage of the excruciating recovery exercise that

was carried out by the army in order to recover the child and earned huge TRPs in the process as the nation sat glued to the television. Though lots of similar incidents have followed the Prince incident, in which cameras have jostled with one another to grab eyeballs, none have managed to earn as many TRPs as the Prince episode. However, the issue nonetheless highlights the penchant of media to portray episodes as ones that seemingly carry national importance.

The Aarushi–Hemraj murder case

When 14-year-old Aarushi Talwar and her family's domestic help Hemraj were murdered on 15 May 2008 in a house in Noida, near New Delhi, the manner in which it was covered by the Indian media sparked off another debate on how television channels and newspapers sensationalised crime stories to attract viewers and readers. The media coverage of the murders gained momentum after senior police officials' speculative suggestions and that the murdered girl might have had an 'objectionable' relationship with Hemraj. Even as the police officials who made these suggestions were transferred from their positions and criminal investigations handed over to the Central Bureau of Investigation (CBI), some television channels and newspapers gave the story unprecedented coverage, much of it speculative and based on unsubstantiated rumours.

Kathua Rape Case

In January 2018, an 8 year old tribal girl belonging to nomad Bakarwal community was brutally raped and killed in Rasana village of *Kathua* district in Jammu and Kashmir. The girl was held in captivity for a week, drugged, gang-raped and then killed. Even though the crime occurred in January, media coverage of the incident outside of the valley started in April only. The communal and political overtones led to the case gaining widespread traction in mainstream media. Several media houses revealed the identity and pictures of the victim and did not handle the case with required tact and sensitivity. In April 2018, the Delhi High court issued *suo motu* notices to these media houses for revealing the identity of the victim.

When the case was under trial, several details of evidence were released by the media and even fake stories started appearing on mainstream as well as online channels. One newspaper reported that the Kathua girl was not even raped and that there were two post mortem reports. Another published the whole incident revealing the identity of the victim in its 'fake stories' section and claimed that the whole case was fabricated. The Delhi High court issued a fine of 10 lakhs on twelve media houses for disclosing the name and other details of the rape victim and using her photograph. The Kathua case was heard *in-camera* in court, media was banned from the courtroom. Later media houses blanked out all the details of the victim in their online editions which were already published. The case is yet another example of media running parallel trials in *sub-judice* matters and influencing the course of justice.

Above cases were followed by some other instances in which news was either manufactured, trivialised or sensationalised, using questionable means.

Activity – 2

You would have come across several news reports in newspapers and magazines, on TV and on the Internet, which in your opinion would have

‘crossed-the line’ and can be considered as unethical. Take newspaper cuttings or printouts of reports from the Internet of three such news items and discuss them with people in your locality. What do they think? Note down their observations and compare them to your own analysis.

Check Your Progress: 3

Note: 1) Use the space below for writing your answers.

2) Compare your answers with those given at the end of this unit.

1) What is neo-authoritarianism?

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2) What is embedded journalism?

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14.7 LET US SUM UP

The media has always been important to the society at large, for it plays two extremely vital roles: that of a messenger and that of an opinion maker. In contemporary times, the development of multiple channels of delivery such as radio, television and the Internet, has exponentially increased the reach of the mass media and the speed with which news is reported. The vehicles of mass media, the world over, have their eyes and ears open to alert the world about an impending disaster before it strikes. The sheer volume and reach of the mass media has meant that individuals and organisations in positions of power, influence and have authority to function under the constant, scrutinising glare of the media. It is in this capacity that the media has extended its role to that of intervening in the social process. On the other hand, it is precisely because the media has such a wide reach and impact, that the state often tries to control it either through its legislative power or otherwise. Also, often, journalists are at the receiving end as they attract the wrath of either the administration or politically powerful elements in society. Media, driven as it is by market forces, has to tread on a fine line while performing its duty in an increasingly complex social milieu. Some of the issues raised in this unit will be further elaborated in the subsequent units of this Block.

14.8 REFERENCES AND FURTHER READINGS

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14.9 CHECK YOUR PROGRESS: POSSIBLE ANSWERS

Check Your Progress: 1

- 1) Utilitarianism is a consequentialist theory that is based on the perspective of ethical altruism. This approach considers those deeds ethical, which create the greatest good for the greatest number of people. The utilitarian approach is applicable to the media as it considers the well being of the society at large and acts as its watchdog.
- 2) Deontology focuses on the intention behind any act and this intention renders any action as ethical or unethical. Kant, a proponent of deontology, argued that the only right intention was the intention to act out of respect for moral law and out of duty. This is an important concept for media which aims to serve the citizens by providing objective and unbiased information.

Check Your Progress: 2

- 1) Authoritarian model propounded that all forms of communications were under the control of the government or the ruling class. This model of media control was developed for the print media, when government authorities tried to curb its power to ensure that the print media did not publish anything that showed them in a negative light.
- 2) Libertarian model stems from the fundamental rights of freedom of speech and expression. This model believed in an independent media and represented the beginnings of a free press, which was free of governmental control and censorship.

Check Your Progress: 3

- 1) Neo-Authoritarian model of media is an offshoot of the authoritarian media system in which pluralism is allowed, but only to a limited extent. Political and electoral issues, information important for national security and other news that may be vital for the ruling authorities are allowed only limited freedom. Even though there are privately owned media, measures like, subsidies, targeted tax advantages, government advertising, etc. are used to control them.
- 2) Embedded Journalism is the practice of placing news reporters with military units, so that they may report directly from the fields of conflict and war. Such reporters who are placed with defence units are referred to as 'embedded reporters'. The practice of embedded journalism began during the Gulf War which raised questions about independence of such reporting.

UNIT 15 MEDIA LAWS: THEORY AND PRACTICE

Structure

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- 15.1 Learning Outcomes
- 15.2 Media Laws
 - 15.2.1 Media Laws: Historical Overview
 - 15.2.2 Media Law Framework in Independent India
 - 15.2.3 Reasonable Restrictions
- 15.3 Media Laws and Freedom of Speech
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 - 15.3.2 Other Relevant Media Regulatory Provisions
- 15.4 Right to Information
- 15.5 Let Us Sum Up
- 15.6 References and Further Readings
- 15.7 Check Your Progress: Possible Answers

15.0 INTRODUCTION

As you must have known already that the most important purpose and object of journalism is to serve the readers and society at large with ideas, opinions, news, comments on matters of larger public interest in the most fair, unprejudiced and accurate manner. Any Media, whether electronic or print is expected to regulate itself in such a way that the Universal standards of media and communication which have evolved over a period of time in terms of effective reporting and professionalism attached to that are observed in letter and spirit.

We can look at the idea of accuracy and fairness in some way where all publications of inaccurate, misleading, distorting or rumour based news or information is supposed to be discarded and a positive role is also to be played to dissuade and discourage search activity. It is also important not to misinterpret or quote something out of its context any statement made by any person, agency or nation. Any article or information should carry the true spirit of what is being communicated by the person agency or country concerned.

In this unit centring on Media Laws: Theory and Practice, we will discuss the relevance of Media laws from the theoretical as well as practical side. You have come to understand that the role of the media is very important and it in fact is considered to be the fourth pillar of every democracy. The role of the media is crucial in initiating and measuring a democratic culture that goes beyond the other systems of governance such as Executive, Legislature and Judiciary and becomes engraved in the public consciousness over time.

15.1 LEARNING OUTCOMES

After going through this unit, you should be able to:

- Describe the historical background and the growth of media law in India with the help of historical and contemporary political scenario;

- Discuss and analyze the overreach of various legislations, approach of judiciary towards such legislation and their impact on media;
- Achieve the basic understanding of the law and ethics and their importance in the field of media laws; and
- Develop knowledge and awareness about the efficacy of legal framework in Media Laws.

15.2 MEDIA LAWS

15.2.1 Media Laws: Historical Overviews

Media law is a dedicated area of the study which includes media communications of all sorts and sizes. This has become increasingly so very important and relevant for all media functionaries in modern times. Media persons in this field may work for individual companies, handling legal issues which come up in the course of doing business.

Several types of communications are covered by centre and state media laws. There are three general areas of interest within media law. The primary is print media, including newspapers, magazines, print advertising and so forth. Telecommunications, including radio and television broadcasting comes next. Digital communications and the Internet is a broad field within media law, and as the Internet evolves, this frontier is constantly changing. Therefore we will try to generate a broad understanding of its myriad facets.

We also need to discuss all the relevant dimensions related to this Morality, Obscenity and Censorship, Contempt of Court, Defamation, The right to Privacy, Copyright so that you are able to understand the need, scope and relevance of Media Laws. While orienting ourselves on the subject of media laws, it is essential to have grounding in the Constitution framework that governs media laws in the Indian context. Dear Learners, you must have read that the Constitution of India is a living document which caters to the micro and macro hopes and aspirations of all the citizens of the country.

It is relevant at this point of time to discuss the major reference points as far as Media and legal framework is concerned. If we go back in time, we find that the first press regulation in colonial India was introduced in the year 1799. On May 13, 1799, the then Governor General Lord Wellesley proposed the 1st press regulation in which it was proposed that it was compulsory for the newspaper to print the names and addresses of the printers, editor, publishers so that a check can be exercised on the publication houses. However, these regulations were not in use for a long time and the next person in charge Warren Hastings in 1830 withdrew the 1st press regulation act.

It is also important to take note of the Gagging Act which came into being in the year 1857. This act talked about compulsory licensing for initiating or conducting any activity of printing and publishing. The Gagging Act in 1857 gave powers to the government to keep a check and prohibit if necessary the publication or circulation of any book, printed matter, on newspaper for the conduct of effective administration. This act also empowered the government to impose any restriction or ban on the publication and distribution of any press reports or new stories which may have an adverse impact on the harmonious social fabric of the society

and which may be stopped if the government felt that may cause tension and threat to the law and order situation. This law was exercised at many places in a rather regressive way but we understand that it was withdrawn after one year of implementation in June 1858.

It is also relevant to take note of the Vernacular Press Act which was passed in 1878. This Act empowered the then day government to have complete control over publications and media activity in Indian languages. Any District magistrate or Police authority under this act had the authority to demand for any security deposit from the Printer, Publisher or Editor of a newspaper and in case of any violation forfeit such security or confiscate any printed matter which was considered objectionable in the interest of maintaining law and order by the British government.

In the context of media laws and legal framework, a reference to the Press and registration of Books act which was enacted in 1867 is important. This act was introduced to have control on the position and circulation of books, magazines and newspapers in India at that given point of time. Under this act, it was necessary for the publishers, editors and owners to provide complete details of the owner, publisher and editor on all the copies which were printed. The printer of every published newspaper and magazine was required to supply at least 2 copies of each issue to the authorities soon after the publication. There was a strict penalty if this was not followed. So we come to understand that media laws were very strict and harsh as far as freedom of speech is concerned, as far as the production from the government side was concerned.

Indian Press Act 1910 is also one such law which wanted owners of all the presses in India to deposit security money to the British government. British government used to forfeit all the security money if anything objectionable was printed by the concerned press. Indian Press Act also empowered the imperial government to conduct raids and seize the property of the press in case of any violation. It was very harsh and imposed an implementation and in the course of 5 years between 1910 to 1914 hundreds of cases were registered against press owners.

Official Secrets Act, 1923 which consolidated the law relating to official secrets was introduced for offenses like spying and wrongful communication of any secret information. If we analyse it closely refined that section 3 of this act of 1923 made it an offense if any person prejudiced to the public safety and interest of the state obtained, collected records or published or communicated any information which was a hindrance to the effective maintenance of law and order. This law was also termed as Draconian by many as British government used this to curtail all voices against the Imperial power and the provision of a term of imprisonment of 14 years as proposed in section 3(1) of the act which was a big deterrent.

15.2.2 Media Law Framework in Independent India

It can also be seen that the Constitution reflects the supreme values of Liberty, Equality, Fraternity and Justice in the very Preamble. Constitution guarantees Justice, social economic and political; Liberty of thought, expression, faith, belief and worship; Equality of status and of opportunity; and to promote among them all; Fraternity assuring the dignity of the individual and the unity and integrity of the nation to all the citizens for the purpose of building a Sovereign, Socialist,

Secular, and Democratic Republic. It is important to note that the Constitution of India which is widely recognised as the most comprehensive and bulky document has 395 articles along with 12 schedules and in the course of 7 decades of independence about 100 amendments have taken place to make it more contemporary and amenable to the needs of the people of the country. When we look at closely in the context of media persons, organisations and the legal scenario governing the field, there is no direct and explicit reference to media laws. In the broader framework, we may deduce that the most relevant articles and sections are 19(1) 19 (2) and 361 (A). We need to discuss this legal framework along with official secrets act, law of defamation, punishment for defamation, contempt of legislature to be able to understand the concept completely which have been in use right from the colonial times.

Article 19 of the Indian constitution lays down, “All citizens shall have the right to freedom of speech and expression, to assemble peaceably, and without arms, to form associations or unions, to move freely throughout the territory of India, to reside in any part of the territory of India, to acquire hold and dispose of property and to practice any profession or to carry on any occupation, trade or business. However the right to freedom of speech and expression shall not affect the operation of any existing law or prevent the state from making any law insofar as such law imposes reasonable restrictions on the exercise of that right in the interests of the sovereignty and integrity of India, the security of the State, friendly relations with foreign states, public decency or morality or In relation to contempt of court, defamation or incitement to offence”.

In the postcolonial scenario, we may refer to the important legislation which came in 1955 in the name of Working Journalists Act. This act was all about addressing the unsatisfactory conditions of Media persons and their harassment in the newspaper industry. The 1st Press Commission which worked from 1952 to 1954 gave a report to the then day Government and as a result the issues of conditions of service and other aspects were taken up and the Act of 1955 came into being.

We can also call this act as a journalist Welfare act because it tried to regulate the conditions of media persons in the newspaper industry. If we study the provisions closely, we can say that this act made important changes as far as hours of work were concerned, Leave rules, fixation and revision of wages, employment funds of media persons, retrenchments rules among others.

This act was revised in 2010 under the Chairmanship of Justice GR majithia in which wages for journalists and non-journalists were recommended.

We may also look at the press council of India which came in 1978. This act provided the setting up of a Press Council in India. The Press council of India Act was introduced in 1965 but it took a long time to create adequate implementation provisions for this and the 1st press council started functioning in 1975 and it faced enormous challenges because of the imposition of internal emergency from 1975 to 1977. Initially, we found that In 1978, when the Press Council of india started working after the emergency years, it had a Chairman who was nominated by a Committee headed by the chairman of Rajya Sabha, Speaker of Lok Sabha and the person elected by the outgoing PCI. For this purpose, for a long time the people who have headed the Press Council of India have been retired judges of the Supreme Court of India.

It is important to take into account the objectives and functions of the Press Council of India. Out of many important functions and activities assigned to PCI, there has to be a special mention of 2 important objectives: one is to decide upon the complaints of journalists for the purpose of the protection of press freedom and also to decide upon the public complaints against Newspapers and Journalists. There are many precedents in which the Chairman decided to take note of some issues all by himself without any external complaint.

The Council has the power to censure a news agency if it finds that the principles or high standards of media and journalistic standards have been compromised. The Council does not decide on cases which are already subjudice. It has got enormous powers to impose fines on newspapers and media persons in case of any violation. This is also important to note that the Press Council of India has framed a code of conduct for the reporting of news. For example, extra caution and all legal dimensions have to be taken into consideration at the time of coverage of terrorism by the press; communal disturbances, reporting general elections; reporting on AIDS stories, and many other subjects of public interest.

The Constitution of India guarantees and creates under Art. 19(1)(a) great scope for freedom of speech and expression and Art. Also, 19(2) allows reasonable restrictions to be imposed by statute for the purposes of various matters including 'Contempt of Court'. A close understanding of that will reveal that the Article is less about 'administration of justice' and more about interference of the administration of justice is clearly referred to in the definition of 'criminal contempt' in sec. 2 of the Contempt of Courts Act, 1971 and in sec. 3 thereof leaving no scope for any ambiguity. What we need to understand that publications which interfere directly or indirectly with the administration of justice amount to criminal contempt under that Act and if in order to preclude such interference, the provisions of that Act have been put in place to impose reasonable restrictions on freedom of speech.

15.2.3 Reasonable Restrictions

If we look at the legal scenario governing the media laws, we may refer to the Contempt of court act which is one of the reasonable restrictions under article 19(2) of the Indian constitution which came into being in the year 1952 and which was later amended in 1971 and subsequently 1976. We find that there are penal provisions if there is something against the authority of the Court. Every publisher, owner and editor has to be very careful not to publish any misinformation or anything derogatory about the court of law governing the country. It will also be useful to familiarise ourselves with young persons act 1956 which covers harmful public publications. This act was enacted with a view to prohibit The publication in India of literature which in some way promotes crime, violence or obscenity.

On our discussion on Media laws, it will be important to discuss Parliamentary Proceedings act 1956 which controls all protection of publication regarding the proceedings in Parliament. The fundamental purpose of this act was to protect the parliamentary preceding papers. If we read closely the section 3 of this Act, We come to understand that no person shall be liable to any proceedings in Parliament if the reason is publication in a newspaper of substantially true report of any proceedings of either house of Parliament unless the publication is proved to have been made with malice.

15.3 MEDIA LAWS AND FREEDOM OF SPEECH

Indian Constitution clearly stipulated under Article 19 (1) (a) freedom of speech and expression has been embodied Freedom of Press as a fundamental right” and the same has been ensured through the various judgments pronounced by our Supreme Court. Under Article 19 two terms have been used one is ‘speech’ and other is ‘expression’. Through various pronouncements the Supreme Court made it clear that term ‘expression’ carries a wider meaning. Term ‘expression’ makes this freedom stronger and wider. In the case of *Bennett Coleman & Co. & Ors.*

It is important to note that despite some of the limitations which have been imposed upon the fundamentals rights and freedoms on speech and expression in particular Indian constitution has made sure that no incumbent government is able to determine the laws according to its own frame of reference. In fact, no person or any agency has any right to curtail, regulate or impair any of the fundamental rights by changing or amending its fundamental nature. This may also be noted that legislative agencies have been given powers to impose reasonable restrictions on the idea of freedom of speech and expression on grounds like Integrity of India, Security of the state decency or morality, friendly relations with our neighboring countries, contempt of court or contempt of legislature and defamation or incitement to any offense.

When we try to understand the reasonable restrictions, it is imperative to understand that there has not been many situations when matters of state security has been put to any danger or threat by the media world and it has been found out and come out in various judgments also that there has been no interference with the freedom of press over all these years, if we do not count the number of cases as far as content of court is concerned.

When we are discussing freedom of speech, it is equally important to take into account some of the limits of Press Freedom at this point. It has always been pointed out that the fundamental right of speech and expression, which include freedom of the press as enshrined in the Constitution is not absolute. Article 19(2) has a provision that if found necessary, the government can impose reasonable restrictions on the freedom of the speech and expression. There is a clear reference as to what and when these restrictions can be imposed. For example, the Government may come out with restrictions if sovereignty and integrity of India is put at risk or threatened and security of the State is compromised. In case of threat to friendly relations with the foreign States, public order, decency or morality, contempt of court, defamation and incitement to an offence, limits may be imposed.

15.3.1 Media Trial, Right to Privacy and other Provisions

The Press Council of India has come out with a model code of conduct about privacy and it is expected that newspapers need to avoid identifying the relatives or associates of a person convicted or accused of a crime, when they are totally innocent and a reference to them is not relevant to the matter reported which is increasingly becoming the trend.

It has to be understood that any person’s details of home, family, religion, health, sexuality, personal life and private affairs come under privacy framework and

good reporting includes proper consent before any publication and that too only if it serves a larger public interest.

It is important to observe the standard reporting in the event of reporting crime such as rape, abduction or kidnapping females or sexual assaults on children, publication of victims, medispersons need to stop details leading to their identity should be avoided. Likewise, minor children or infants who are the offspring of sexual abuse or forcible marriage or illicit sexual relations should be reported responsibly and their details particularly their images should not be made public.

The Media in recent times has faced immense criticism in some cases when media trials took place and derailed the process of actual justice. In many cases, it has been seen that media attention is very vital and helped the case receive its deserved attention but in some cases the idea of Media trial reached its extreme and the whole exercise proved counterproductive. If we take some examples of Talwar Murder case, Sushant murder case, Rupan Deol Bajaj case, it was alleged that right to privacy was compromised in a big way. All media agencies need to be alert and careful about this aspect that during the act of reporting, the right to privacy of all concerned people are preserved and protected.

After the judgement of M.P. Sharma and Kharak Singh, the issues and debate over the status of Right to Privacy is more or less settled. “Right to Privacy” has now acquired the status of Fundamental Rights. Also, in the case of Justice K.S. Puttaswamy & anrs. v. Union of India and others our Supreme Court has ruled that –the right to privacy is protected as an intrinsic part of the right to life and personal liberty.

In the modern World which is driven by information and communication technologies in an increasingly dominant way, it is all the more important that there are media laws and regulatory frameworks so that all the stakeholders in the media world respect and remain governed by the best practices of Journalism.

There are some labour laws which are found applicable to the Press. Broadly, Trade Union Act, 1926, Payment of Wages Act, 1936, Industrial Disputes Act, 1947, Factories Act, 1948, Minimum Wages Act, 1948, Employees State Insurance Act, 1948, Employees Provident Fund and Miscellaneous Provisions Act, 1952, Working Journalists (Fixation of Rates of Wages Act) and Payment of Bonus Act, 1965 can be studied for further understanding.

15.3.2 Other Relevant Media Regulatory Provisions

At this point, it will be highly useful to look at the National consultation on Media Laws as stipulated by Law Commission with various stakeholders to overcome the long pending issues and challenges:

If we survey the methods of regulation broadly, Regulatory Approaches Responses have been divided into suggestions advocating for self-regulation, coregulation, meta-regulation and state-led regulation for the media. The broad arguments to support each of these approaches are listed below:

- 1) **State imposed Regulation:** Many responses opposed all state intervention in media regulation for multiple reasons including the fact that it would ultimately compromise the independence of the media and bring down its watchdog function, and that decisions about media content should only be

made by the judiciary as it implicates the right to freedom of expression as well as other constitutional rights. However, some observers feel that statutory regulation proves to be a more effective alternative than self-regulation for the media. In fact, some have argued for imposing a positive legal duty on the government to protect the freedom of the press. This is primarily suggested to save the press from serving the interests of Private or business interests at the cost of larger public good. Statutory regulation would hold media entities publicly accountable. Legislation to control the media in public interest would have a popular mandate. An effective government regulator would increase the level of compliance in the media. While no specific regulation is needed for the print media beyond the general prohibitions against defamation and invasion of privacy, the broadcast media requires additional regulation.

There have been some suggestions of a massive makeover from some media sections such as Replacing News Broadcasting Standards Authority(NBSA) with a statutory body along the lines of the UK's Office of communication and other agencies in western countries. Establishing a regulatory body on the lines of the Telecom Regulatory Authority of India (TRAI) to deal specifically with broadcast media. It needs to provide a basic set of guidelines based on which content parameters may be developed by media entities for self-regulation. Establishing a regulator operating in a manner similar to the Advertising Standards Council of India (ASCI).

Establishing a broadcasting regulator that serves as the single point of contact for uplinking and downlinking licenses having objective rules for allocation of the licenses, provided that all content regulation is left to self-regulation. Limiting state-led regulation to structural issues such as media ownership, advertising and other economic or architectural issues. No additional regulations would be necessary as a number of laws already regulate content, and accord the courts with the function of administering them. Some respondents considered the specific design of the regulator. Experts and observers have argued for some specific provisions in the regulatory mechanism:

There must be adequate representation for persons having special knowledge of and professional experience in the fields of television, radio, cinema, advertising, fine arts, journalism and the law. Also, competence in literature, social sciences, finance, commerce, auditing and accountancy should be taken up with a sense of priority. Regional media houses as well as local media should be adequately represented and appropriate provisions need to be created for their intervention. It has also been advocated that too much business interests be discouraged. Measures must be put in place to ensure a valid autonomy and independence from the government interference.

- 2) **Self-Regulation:** On the other hand, the fundamental need for self-regulation of the media in a developing society like India is for the media to be accountable only to the grassroot public needs. In most cases, it has been seen that both statutory and co-regulation cannot ensure this need. The essential media's function of a watchdog is to hold the government accountable may get hampered by government regulation, which would affect the independence of the media. Securing government non-interference

can help preserve editorial freedom and media credibility. It has been pointed out that Government regulations may be rigid and may discourage innovation. They may also discourage new competition since they establish norms that address only current market participants.

Self-regulatory regimes are more efficient and more flexible than top-down regulation. They increase incentives for compliance and regulate costs for the media. Media entities already use their terms of service and other methods to embed community standards in their operation. Self-regulation would involve standards which are set by a body readily equipped with a clear understanding of the media environment and its concerns. These standards would have been evolved through consensus rather than governmental imposition. Self-regulatory institutions such as the BCCC and the NBSA have proven capable of effective enforcement of their standards. Self-regulatory institutions are more approachable than governmental institutions. They are capable of delivering a transparent and consistent regulator which will be able to promote both accountability and investment, and create jobs in the sector. Self-regulation entails a system of peer review, which can serve as an effective check on the industry's operation as a whole.

Check Your Progress: 1

Note: 1) Use the space below for writing your answers.

2) Compare your answers with those given at the end of this unit.

1) What do you understand by freedom of the press?

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2 Under what situations, limits can be imposed on Freedom of Speech?

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15.4 RIGHT TO INFORMATION

When we are discussing media laws and regulatory framework, it is important to discuss the Right to information Act. Many analysts and commentators from time to time have pointed out that 'freedom of information' and 'right to information' are not the same ideas. Freedom means lack or absence of any restraint in terms of legal penalties. On the other hand, freedom of information implies that every citizen has easy and equal access to information and he or she

is free to access that information without any fear or punishment. However, the State is under no obligation to give that information to the citizen.

We need to understand that Right to information is so very crucial for any democratic country and for the purpose of easy availability of information. Right to information Act which was passed in 2005 by Indian Parliament gives all the rules and procedures regarding citizens right to information. This right has been used in a big way in the last decade and it has been observed that right to information is the most effective way to ensure a much needed sense of transparency and accountability in the system.

Right to information is so very crucial for the growth of Media. You may note that it is only because of Right to information that corruption at high places has been exposed and some of the scams have come into public glare only because of this Act. Scams in the public distribution system, disaster relief, construction of highways midday meal pension scam have been exposed only because of RTI.

Check Your Progress: 2

Note: 1) Use the space below for writing your answers.

2) Compare your answers with those given at the end of this unit.

1) Why do we require media laws? Discuss their importance.

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2) What do you mean by Right to Information? Do you think it is necessary for a democratic society?

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15.5 LET US SUM UP

It is important to understand that despite having a very competitive legal and regulatory framework, there is a huge gap as far as the theory and practice is concerned. We have seen on several occasions that many vested interests groups appropriate media for their own selfish goals and bring bad name to it in the process. Now that more and more people are being trained into media and journalism, there is a scope that the gap would shrink in the due course and only that will allow and enable media to achieve its real and true purpose. To ensure that it would be logical to not take any extreme direction and a mix of public and

private control over media organisations will be most suitable as too much of government control and too much of autonomy has not given any big rewards.

15.6 REFERENCES AND FURTHER READINGS

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15.7 CHECK YOUR PROGRESS: POSSIBLE ANSWERS

Check Your Progress: 1

- 1) Ref. to 15.3
- 2) Ref. to 15.3

Check Your Progress: 2

- 1) Ref. to 15.2.2
- 2) Ref. to 15.4

UNIT 16 GENDER AND MEDIA

Structure

- 16.0 Introduction
- 16.1 Learning Outcomes
- 16.2 Relationship between Gender and Media
- 16.3 Visibility and Invisibility
- 16.4 Portrayal and Representation
- 16.5 Gender in Mainstream and Alternate Media
- 16.6 Implications of Gender-Media Relationship
 - 16.6.1 Stereotyping
 - 16.6.2 Socialisation
 - 16.6.3 Omission and Commission
- 16.7 Projects and Organisations
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 - 16.7.3 Women Communicators
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- 16.8 Let Us Sum Up
- 16.9 References and Further Readings
- 16.10 Check Your Progress: Possible Answers

16.0 INTRODUCTION

Gender as a theoretical concept has evolved during the last few decades. Rooted in women's movement and based on the premise of unequal relationship between men and women in any society, gender today involves a vast array of issues and concerns. It has also emerged as an academic discipline by itself and is accepted as an area of utmost importance by activists and academics alike.

In this unit, the focus of our discussion will be on the relationship of gender with media and implications of that relationship for media producers as well as the members of the society - both men and women. Most often we view gender as a dichotomous binary but in some societies there are three or even four genders. In Asian, South Pacific and North American Indian societies individuals who adopt gender behaviour ascribed to members of the opposite sex; they live, work or dress beyond their biological binary. Gender refers to the relative position of man or woman in a given caste-class-race-geography contexts.

In any given society the roles, qualities, behaviour of 'biological' man or woman are defined by the members of the society. Since your childhood, you as a male or a female are told what is expected from you. For example, if you are a boy and you cry, in the Indian context you are told 'why are you crying like a girl'. If you are a girl and if you want to study further and work, some of you may be advised that to learn to manage household chores and think about marriage rather than career. Most often the valuation associated with 'female' roles-qualities-behaviour is inferior. Males get certain advantage or freedoms in terms of mobility, resources.

sexuality, fertility, property and so on. Being female means restrains over mobility, behaviour, sexuality and lack of access to resources and opportunities to generate resources. You would have noticed even within your own family or around how girls and women are asked to 'be conscious about being female' whereas boys and men usually get relatively flexible code of behaviour and role concessions.

Media as earlier discussed, refers to anything that is used to reach out to people in any society. It could be street plays, text books, out of house media, proverbs, songs, stories, drawings and paintings or technology mediated mass media like television, radio, newspapers or films and even Internet. It is necessary to understand that when media portrays a particular 'stereotype' it reinforces 'expected' code of conduct in a given society. Apart from stereotyping media selectively presents the reality about roles-behaviours-qualities of women as well as men. Even about caste, class, religion, race and ethnicity. Such representations inevitably influence the members of the society as well as people in question.

Apart from the way media 'shows' gender realities, issues like who are media personnel and how they influence 'what is shown' have also become critical in recent years. If media has only upper class and upper caste people, and men more than women working as employees, more often realities, especially of women, poor lower caste people would not become part of media content. These audiences when they do not see such realities being shown feel more marginalised.

16.1 LEARNING OUTCOMES

After reading this unit you should be able to:

- explain the concept of gender and its relationship with media;
- describe issues associated with gender and its relationship to media;
- examine implications of gendered representations in media on society; and
- discuss some national and international projects and institutions working on issues of gender and media.

16.2 RELATIONSHIP BETWEEN GENDER AND MEDIA

UNDP Human Development Report (2007/2008) states, "Women's historic disadvantages - their limited access to resources, restricted rights, and a muted voice in shaping decisions -make them highly vulnerable to climate change (and everything else in the development process). The nature of that vulnerability varies widely ... But climate change (and everything) is likely to magnify existing patterns of gender disadvantage".

You can try and analyse what are the messages you grew up listening about your 'being' a boy or a girl. You would realise that it was the list telling you of code of behaviour, expected role and anticipated qualities depending upon your biology being male or female. Media is one of the main players in this socialisation. Media showed women as 'submissive housewife', 'domesticated bahu', 'aggressive husband and coy wife'. Occasionally it shows them counter opposites of 'dominating woman' in form of mother-in-law or 'submissive husband' as a considerate man.

Gender is all pervasive and it is a cultural construct. Language is a critical part of culture. Gender becomes part of society even by the words indicating 'expectations' and 'prevalence'. Words like 'cameraman' and 'chairman' make men all pervasive and marginalise women. As you are aware the term sex is variously employed and it includes everything from the sex cells to sexual behaviour. Gender and sex are different conceptual constructs. Sex invariably is a physiological whereas gender a sociological construction. Sex refers to biological differences between men and women, boys and girls. Gender characteristics are culturally constructed. Differences in biological functions of males and females are genetically determined and immutable but cultural belief systems determine gender definitions.

Sexism is reflected and reinforced by gender differences and inequalities in language, language use and non-verbal communication. Simplest example of it is the way we call 'history' as 'his story' and 'mankind' in spite of women bearing the burden of human society. The chairpersons are referred as chairman. We almost always define doctor as male and nurse as female. There is a variation in degree of 'equality' amongst males and females. This variation has been historical as well as cross-cultural. There is a radical female disadvantage across cultures globally.

When woman cooks food in the family, she does not get or expect economic benefit and it is looked upon as 'her duty'. But the chefs in restaurants are mostly men. While sewing is more often done by women without economic returns, most tailors are men who earn for the same work. The concept of private sphere refers to women to be confined within the four walls of house/family taking all the burdens without recognition. The same activities in public sphere get economic returns and recognition for men. Contrary to it if men cook in the house, it is occasional and usually not appreciated even by the woman of the house. Even if he does so in absence of woman, it is looked up as 'woman's work'.

You should realise that the values and meanings attributed to gender identity are encoded, preserved and transmitted through public symbols. These symbols are shared by the members of a particular society. At a basic level they are vocabulary and convention of language itself. On a complex level they are thoughts and behaviours. Media contributes to this process of meaning making.

Activity-1

What are the qualities that you associate with females and males? Analyse, to what extent your response is culturally constructed rather than biologically defined?

16.3 VISIBILITY AND INVISIBILITY

You must have been watching television and films, reading newspapers. You might be coming across men and women and even 'third gender' (Hijras, LGBT-Lesbians, Gays, Bisexuals, Transgender, Intersexual) in your day to day life. If you pay attention, you will realise that media simplifies the diversity within the third gender. If you examine how 'local/domestic' media presentation of gender roles are different from 'global/international' media presentation. India now officially includes a third option in the gender categories that citizens can select, opening the way for stronger recognition of sexual and gender minority rights

All media are gendered. Women continue to be shown in advertising to add glamour value, they are objectified and commodified. Bare bodies of women and now even men form an integral part of media content. Media even define those bodies as size-zero female or six-packed male. Health, nutrition, beauty, language and so on get shaped by media, and all these are gendered.

Even American media is not different. Research by Dr. Stacy Smith of Annenberg School for Communication & Journalism for The Geena Davis Institute on Gender in Media reveals that males outnumber females 3 to 1 in family films though they are just over half of the population in the United States. The study revealed that this ratio, as seen in family films, is the same as it was in 1946. Even the Gender Media Monitoring Project in 2009/10 clearly showed while women form half of the population, women become news subject only one fourth times compared to 76 percent of men. Only 13 percent stories globally were women central stories and only ten percent had gender-policy reference. Only six percent stories highlighted gender equality.

Media makes gender issues visible as well as invisible at the same time. Television programmes like *Balika Vadhu* or *Satyamev Jyate* made child marriage or many other social issues visible, it also made them visible from a stand point. While certain visibility is 'good' the invisibility leads to absence from mainstream discourse. Farmer suicides, child sexual abuse, smoking and drug abuse, honour killings and many such issues while represented in media, on one hand creates public opinion, may lead to stereotyping, selective representation or even misrepresentation.

16.4 PORTRAYAL AND REPRESENTATION

The most discussed and commented area with reference to gender and media is that of portrayal. Portrayal refers to 'way of showing'. In a recent Delhi gang rape case, a premier English daily of India referred to the girl as 'nirbhaya' to 'portray' the 'girl who was raped'. Usually women/girls having faced sexual assault (rape being one of it) are referred as 'victim'. This change of terminology may or may not have led to real change in the attitudes of society but it has definitely led to creation of space to talk about such issues, public opinion and some legislative amendments.

The most commonly researched and discussed portrayal issues are stereotyping. Women are most often shown as delicate, pretty, docile, helpless, unintelligent whereas men are shown 'in control' of situation. Masculinity is valued and femininity is shown as unimportant. Apart from creating male-female stereotyping, media also creates caste-class-religion-education and other variable stereotypes. In most Hindi films heroine is shown wearing western outfits and the moment she is married, she gets wrapped in a saree while educated women are shown as selfish. Also most often you would have seen that heroine in trouble due to her clothes abused by goons is 'saved' by a hero. Majority of times, film and television represents Hindu iconography and rituals for a country as diverse and secular as India.

In UNESCO's review of literature on women and media, Gallagher (1981) notes that her review presented "a picture remarkable only for its overall consistency when compared from one country to another" (p 70). The report noted, Representation of women can best be described as narrow. On film, press and

the broadcast media, women's activities and interests typically go no further than the confines of home and family. Characterised as essentially dependent and romantic, women are rarely portrayed as rational, active or decisive. Both as characters in fictional media material and as newsmakers in the press and broadcasting, women are numerically under representation- an absence which underlines their marginal and inferior status in many spheres of social, economic and cultural life. Prevalent news values define most women and most women's problems as un-newsworthy, admitting women to coverage primarily as wives, mothers or daughters of men in the news: in their own right, they make the headlines usually only as fashionable or entertainment figures.

Leela Rao (2001) stresses the need to formulate an explanatory and representative theory that encompasses the various domestic, urban, rural, and global factors that shape the current Indian social order, which is closely affected by the global consumer culture. Rao further remarks that "most of the women who articulate the inequalities of gender in media belong to urban, middle class and upper caste segments of society, they inevitably face accusations of their 'Western-ness' and consequent 'in authenticity' and questions: "What should be the criteria to evaluate the media projection of a homogeneous pan-Indian identity of woman?" (Rao, pp. 47) when there is no such single and identifiable identity.

Alexander Georgia, Rudaba Nasir, and Huyen Tran (2011) argue that gender misrepresentation in mainstream media is common across countries and cultures all over the world. They remark that especially now that globalisation has initiated the spread of a strong global culture that has permeated and changed societies, values, traditions, and perceptions. This means that although there are similarities in the way in which women are misrepresented in media, there are also certain differences dependent upon the indigenous culture and values and how the global culture interacts with these local values, cultures, and societies. They give examples from India, Chile, Latin America and the USA pertaining to gender and media.

Activity-2

List the role expectations from you in your family and compare the same with role expectations presented in an Indian television serial or film. Are there variations? If yes, what are they? Now watch an international television programme and see if role expectations differ from the Indian media?

Check Your Progress: 1

Note: 1) Use the space below for writing your answers.

2) Compare your answers with those given at the end of this unit.

1) What qualities are associated with women vis-à-vis men?

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2) What are role expectations from women vis-à-vis men?

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16.5 GENDER IN MAINSTREAM AND ALTERNATE MEDIA

The Main Stream Media (MSM) is all pervasive, largely commercial and privately owned media. In India too MSM constitute large part of English or Indian language media. MSM producers usually stick to what is supposedly expected by the large majority of its audiences, the conventions used in MSM therefore are also stereotypical and largely gendered.

Leela Rao (2001) observes that media monitoring by various women’s groups have produced three main insights: print media’s deceptive and insensitive portrayal of women’s issues, highly patriarchal content of television programmes portraying women as having limited or no role outside the house, and female models in TV commercials trivialising women’s domestic work and achievements outside the ‘home’ domain. “When there is a success story, the sufferings/exploitations are not highlighted; when women are victims, their struggles/strengths are not projected; newsmakers were mostly politicians and male; the more local the media, the less the reference to women” (Rao, pp. 46). The GMMP report of 2015 observes that only 24 percent of newsmakers in the world and 22% in India are women in contrast with, 78 per cent men in Indian media and 76 per cent worldwide. Across the different reports the most worrying is the fact that there has been no change in women’s news making role in the traditional media since 2005 (Gallagher, 2016). With few women being newsmakers the stereotypes about men and women continue to abound in them. The 2015 GMMP report further reinforces these aspects with its findings of only 4% of stories challenging gender stereotypes, in comparison to 42% that reinforced them, and women were only central to 11% of online news stories, compared to 13% of traditional news media.

In India and across the globe there are numerous advocacy groups, non-government organisations and government organisations working for public service. Such agencies inevitably showcase gender more sensitively than the MSM. But as we know, alternate media remains ‘alternate’ having a limited reach. In last few years the Internet has contributed immensely in connecting gender advocacy groups globally. There are projects and organisations dedicated to media literacy and gender sensitisation.

Activity-3

Compare and contrast how local media is different from the mainstream and international media in showing women-men-transgenders. Analyse the material developed by an NGO or advocacy group and see how they present issues differently.

16.6 IMPLICATIONS OF GENDER- MEDIA RELATIONSHIP

Kamla Bhasin and Bina Agrawal (1984) argue, “by reinforcing sex-stereotypes and constantly glorifying motherhood and subservient wifehood the media makes it difficult for women to break out of those prescribed roles, norms and behaviour patterns. Such conservative depictions reduce the few statements about sex equality and equal participation of women contained in the constitution to mere window dressing”.

Fair gender portrayal can not only benefit present society but also the future of the society. If children grow up with non-stereotypical gender roles and unbiased gender identities, every member of the society gets the chance to discover one’s full potential.

According to UNESCO (2009) Fair gender portrayal is professional and ethical aspiration, similar to respect for accuracy, fairness and honesty. It is the other side of the coin that says women need to be more present at higher levels of the news business, both at work and in the unions. In a world where hard news is still mainly reported and presented by male journalists there is a need to stand up for gender equality. This equality is not just a women’s issue; everyone benefits from eliminating discrimination.

Some implications of misrepresentation of gender in media are stereotyping, socialisation, omission and commission.

16.6.1 Stereotyping

One of the most long lasting impacts of gender representation in media is that of ‘stereotyping’ which refers to ‘defined way of showing’ or ‘fixing certain characteristics’ with individuals. Stereotyping provides a ready-to-use template for everyone. Most often cultural stereotypes form part of popular culture. Media producers find it easier to use stereotypes as it makes the communication easy to reach. But the ease to reach out cannot be at the expense of gender.

As we discussed in the earlier sections how women are stereotyped as weak and men as strong. Similarly, morality and sexuality are defined through representation. Heterosexuality is considered ‘norm’ and homosexuality as ‘abnormal’. Such stereotypes not only make it difficult for people who do not ‘fit into the fixed norm’ but also create resistance for deviations in the society. Like communalism and fundamentalism, stereotyping influences ‘normalcy definitions’ of a given society. It also makes you think of a group as inferior or superior. The people who are stereotyped may get impacted in their perception about themselves.

16.6.2 Socialisation

You have read about cultivation analysis by George Gebner and his colleagues in Unit 2 on Media Audiences. Their research revealed that children who watch cartoon shows got influenced by violence shown and replicated it in real life. While debating the role of media and society as to who influences whom, one cannot ignore the fact that media does play an important role in socialisation.

The way media shows men, women or third gender impacts the way people perceive them in real life. While school text books state that “My father goes to work and my mother is at home”, the orientation towards ‘not-working’ homemaker is inculcated in the child’s mind. Any form of misrepresentation or stereotyping contributes to the gender identity formation. It gives him/her acceptability if their mother is not working and creates dissonance if they have a working mother.

We cannot deny the fact that people live beyond media and media cannot influence people so much. But at the same time, commodification of women in advertising, promotion of unwanted needs through consumerism, projection of unsustainable life styles are realities of media-saturated times making viewers getting carried away by what is shown and gender is no exception.

16.6.3 Omission and Commission

Sanjay (2006) quoting Centre for Social and Development Studies survey of 37 Delhi-based media organisations remarks, “Hindu upper caste men hold nearly 71 percent of top jobs in the national media. Women, non-upper Castes and Muslims are grossly under-represented”. Due to profile of people working in media the ‘nature of content’ covered and presented by them may carry ‘class and caste’ bias.

Apart from media personnel, media inherently eliminates certain realities and exaggerates certain other due to varied societal and institutional compulsions. English media many times does not do full justice to the regional contexts while the regional media may be coloured by local contexts of creation and consumption.

Some studies about women working in media have revealed that they face pressures due to their being women. Stories by women journalists may not see the light of the day due to bias of male editors. Homosexuals face discrimination at work place due to their gender preferences. At the same time if the editor is positive about homosexuals, s/he might give preferences to their stories. #MeToo is another journey in gender and media space that is in a process of development.

The above discussion would have helped you to understand how gender can influence media content creation as well as consumption and that gender and media has long lasting implications.

Check Your Progress: 2

Note: 1) Use the space below for writing your answers.

2) Compare your answers with those given at the end of this unit.

- 1) List some films in which the heroine is not interested in the relationship and hero keeps following her up. In your opinion what does this process suggest? How does it impact relationship between men and women in our society?

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2) Why such representation should be opposed?

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16.7 PROJECTS AND ORGANISATIONS

It would be pertinent to discuss a few projects and organisations working in gender and media. You also must know that work in the area of women and media is more comprehensive compared to gender and media. Women's movement has historically addressed control and access issues with reference to media for over four decades. Gender being more recent academic formulation has limited literature forthcoming.

16.7.1 Projects

Several initiatives regularly undertake media monitoring and examine the gendered aspects of the media as well as advocacy activities that promote change in policies, within newsrooms and journalism practice.

Global Media Monitoring Project: The GMMP is a longitudinal research and advocacy initiative on gender in the world news media, globally co-ordinated by The World Association for Christian Communication (WACC). The research has been carried out in 5-year cycles since 1995 to monitor change in selected indicators of gender in news media content. Data was collected in 108 countries for the fourth research in the series, in 2010. The report is available online (http://www.whomakesthenews.org/images/stories/website/gmmp_reports/2010/global/gmmp_global_report_en.pdf).

In 2015 one more round of monitoring was carried out but the findings did not bring any relief. In spite of the fact that women are half of the humanity, they are represented proportionately only one fourth and most often do not have their own voice. The project examined women as news sources/providers, media professionals, news subjects and their portrayal in news stories.

Resource Kit: WACC and the International Federation of Journalists (IFJ) launched a resource to promote gender ethical journalism. The Learning Resource Kit for Gender-Ethical Journalism and Media House Policy is the outcome of a project launched in July 2011 to promote fair gender portrayal within media houses and the journalistic profession. The kit is organised in two books. Book 1 concentrates on conceptual issues about gender in news reporting. Book 2 presents gender-ethical thematic guidelines on reporting climate change, disaster, economic news, sexual and reproductive health, human trafficking, peace and security, politics, and sexual violence.

Training Kit: Screening Gender is a co-production of NOS/Netherlands, NRK/Norway, SVT/Sweden, YLE/Finland, DR/Denmark and ZDF/Germany, with financial support from the European Commission's Fourth Community Action

Programme on Equal Opportunities for Women and Men. The training kit has been produced within a three-year project Promoting Good Practice in Gender Portrayal in Television, 1997-2000. Based on the conviction that non-stereotypical gender representation is a vital element in quality programming, the project selected programme examples to illustrate common patterns in gender portrayal. The kit is primarily aimed at media professionals for use in training, as well as in programme development and evaluation.

Handbooks: The Mediterranean Institute of Gender Studies from the Republic of Cyprus has created ‘The Gender and Media Handbook’ in 2005. The handbook ‘promoting equality, diversity, empowerment’ is available online (<http://medinstgenderstudies.org>). It notes, “There are many obstacles to changing media cultures. We see everywhere persistent negative or stereotypical portrayals of women in the conventional media that are perpetuated and accentuated by new media (for example video games, the internet and music videos). There is, furthermore, a distinct lack of media depictions of minorities or the disabled, especially in this country. In Cyprus there is an overwhelming lack of women in decision-making positions, and a lack of gender-sensitivity among media decision-makers as well as those who write policy. There is a clear lack of role models and mentors for women journalists and no support from donor agencies for alternative media produced by women”. There is another handbook by Greta Gober and the International Network of Women in Radio and Television gender mainstreaming project publication available online (https://www.iawrt.org/sites/default/files/field/pdf/2019/02/GMP_Handbook_IAWRT_ebook.pdf) titled Working towards Gender Equality in the Media published in 2019.

Curriculum: UniTwin (The International UNESCO UniTwin Network on Gender, Media and ICT- www.unitwin.net) is in a process of developing curriculum for gender sensitive coverage of media issues for media schools. It is in a process of publishing under the title Gender Media and ICTs: New Approaches for research, education and training.

16.7.2 Organisations

A number of organisations as well as networks of women media professionals are also working in diverse ways to monitor and critique media trends and support women in the media.

National Organisations: Way back in 1983, Government of India constituted committee on portrayal of women in media. Working Group on Software for Doordarshan noted in its report, “Girls are socialised to be passive, submissive and docile because they grow up with such role models which also define their lives as a preparation towards marriage and motherhood in almost total exclusion of any other aspect. Therefore, it is important that the children’s programmes should be always conscious of projecting the values of equality and breaking those of sex stereotypes” (GOI, 1985, P-144). The report also known as Joshi committee reported devoted a chapter to women titled “Women-The Neglected Half” and made several recommendations for women’s programme on Doodarshan, public service broadcaster of India.

Many women’s groups and women’s magazines like Manushi made gender issues visible in mainstream media space. Autonomous Women’s movement has many groups all over India which fight for gender discrimination and women’s portrayal

in media. AWAG (Ahmedabad Women's Action Group and SEWA Video in Gujarat, SKILLS Madras (now Chennai) based group, Video volunteers, Women Feature Service in Delhi, The Network of Women in Media (NWMI) in 16 centres across the country, groups working for the sexual minorities are also working for gender and media.

Many organisations have worked in the direction of media literacy, training of women in screen printing and other media production, gender sensitisation and so on. It is challenging in a country like India to have central documentation due to linguistic and cultural diversities but it can be aimed for in the coming years.

International Organisations: The Geena Davis Institute on Gender in Media was founded in 2004 by Academy Award-winning actor and advocate Geena Davis. The Institute and its programming arm, see Jane, are at the forefront of changing female portrayals and gender stereotypes in children's media and entertainment. The website notes that it is the only research-based organisation working within the media and entertainment industry to engage, educate, and influence the need for gender balance, reducing stereotyping and creating a wide variety of female characters for entertainment targeting children 11 and under.

Asia-Pacific Institute for Broadcasting Development (AIBD) in collaboration with Friedrich Ebert Stiftung (FES) carried out training programmes with programme producers and published a booklet 'Broadcasting for All: Focus on Gender' in 2011. The booklet also provides resource links besides addressing issues of gender and media. It remarks that gender is a human rights issue and great challenge for media organisations and professionals and for governments and women and men in the wider society.

In 1979, Jean Kilbourne's lecture about image of women in advertising was made into documentary "Killing us softly: Advertising's image of women". It has been revised and updated four times. The videos with examples from American advertising is informative and educative about women in advertising. In 2010, Still killing us softly IV was made by Jean Kilbourne with The Media Education Foundation. It examined objectification, sex stereotypes, body/self image and representation issues in advertising.

The Global Women's Studies and Gender Research Network was established in 2006 by UNESCO. UNESCO has continued work in the area of gender and media and has number of publications to that effect (UNESCO, 2009, 2012). In November 2014 UNESCO organised first meeting of the International Steering Committee (ISC) of the Global Alliance on Media and Gender (GAMAG) in Geneva. The alliance strengthened action in the direction of gender and media. UniTwin (University Network in Gender, Media and ICTs) worked on curriculum for journalism programmes. In 2019 they came up with a publication titled "Gender, Media, and ICTs: New Approaches for Research, Education and Training".

16.7.3 Women Communicators

In the history of time, women have voiced their concerns. Most often that did not receive mainstream attention and action but women have not been silent. There have been women communicators who have created gender sensitive media in India and abroad. Women as folk artists, song writers, poetess, authors, painters,

directors, novelists, dancers, journalists, documentary filmmakers, actresses, photographers, reporters, anchors, news-readers, even politicians, CEOs and business leaders have been communicating with diverse impact in the society.

There is media created by women and there is media created for women. Not necessarily all the media created for women is gender sensitive. Much of women's magazines refer to women's role in cooking, beauty and child care. But organisations like Jagori, Nirantar, SEWA, CHETNA and many other have created volumes of material which is gender sensitive. There are newsletters, story books, reading material for neo-literates, diaries, annual reports, event documentations and much more. Such material may not be seen by lots of people, but it does exist, and provides insights into processes of the organisations, individuals and collectives which view women as individuals.

Women like Kamla Bhasin, Deepa Dhanraj and many others have worked on women's issues with gendered lenses. Indian Association of Women's Studies is another organisation that has been instrumental in bringing together autonomous women's groups in the country. There have been male communicators too but few in numbers.

16.7.4 Women's Issues

Women's issues have become mainstream issues in twenty first century. The international women's day has been co-opted by the markets. Women customers received discounts or free desserts were served in restaurants; diamonds purchases were promoted for wife and girl-friend in the name of women's day; buy 1 get 1 free offers were also given. Women's day from struggle concept became celebratory concept. For obvious reasons, women are half of the market and capitalism would not mind co-opting them as consumers. What is unfortunate is that while women as individuals are being promoted in advertising, the concerns about their security is still promoted in news media. The struggles of eighties by women's organisations have come full circle where movements for rape, dowry, body image are becoming more and more relevant in the age of social media. While social media is providing alternative space for voicing women's concerns and lives, it is also promoting women's stereotypes in terms of beauty, childcare and house work. Third gender and decriminalisation of section 377 has led to public acknowledgment of third gender in India.

Activity-4

Examine the focus of newspapers and television channels on International Women's Day. Analyse the relevance of such media content in your own day to day life.

16.8 LET US SUM UP

In this unit we discussed how media and gender are inseparable and how valuation of feminine as inferior and masculine is superior is all pervasive, globally. Due to skewed media portrayals, the society and people may perceive themselves in a similar light. Thus stereotyping, portrayal, representation, omissions and commission of women, men and third gender in media may lead to distorted socialisation, visibility or invisibility about them in society.

It is in the power of media to question, challenge, and facilitate diverse gender definitions, roles and identities. Newer ways of presenting gender division of work may lead to change in gender identities in a given society. Visibility of women's work and women's role in any society can give them equal opportunities. Women who constitute half of the humanity, if represented equally in media will lead to a more equal society.

There are a number of women communicators who have actively contributed in the alternative spaces and have also been receiving mainstream media glare. In twenty first century women have become an important topic in media content and gender concerns are now mainstreamed. There are individuals, organisations working in the direction of mainstreaming gender sensitive media contents which includes professional associations, United Nations and national organisations.

16.9 REFERENCES AND FURTHER READINGS

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16.10 CHECK YOUR PROGRESS: POSSIBLE ANSWERS

Check Your Progress: 1

- 1) Media shows women to be feminine and men to be masculine. Women need to be submissive, tolerant, emotional, passive, delicate, pretty, caring. Men need to be strong, tough, aggressive, in control, active and daring.
- 2) Women are expected to be looking after the family, doing household work, taking care of children and elderly, cooking good food, need to keep smiling and happy and never question any decision made by others. Men are expected to be earning for the family, decision-maker and in control. They need to be providing for all the requirement of the family.

Check Your Progress: 2

- 1) Multiple Indian films in all languages show women being pursued by male lead. The heroine does not agree to the advances but the hero does all sorts

of thinks to make her agree to his proposition. Such representation makes it normal that there is no need to a woman's consent in the relationship and it is man who decides and can 'force' his need/decision on her and whatever he is doing is 'love' and not 'violence'. Film songs, dialogues and sequences keep reinforcing such stereotypes which may lead to an understanding in younger audiences that it is 'acceptable' to do things with 'girl' even if she is not approving of the advances.

- 2) The reason such representation needs to be opposed is that it disrespects women and reduces her agency. It shows power play and objectification of women and minimises her consent in matter related to her own life.



UNIT 17 MEDIA AND HUMAN RIGHTS

Structure

- 17.0 Introduction
- 17.1 Learning Outcomes
- 17.2 History and Development of Human Rights
- 17.3 Human Rights: Conceptual and Theoretical Framework
 - 17.3.1 Different Theories of Rights
 - 17.3.2 Critique
- 17.4 Human Rights: Legal Framework
 - 17.4.1 Universal Declaration of Human Rights
 - 17.4.2 Indian Constitution and Human Rights
- 17.5 Media, Society and Human Rights
 - 17.5.1 Democratic Polity, Mass Media and Processes
 - 17.5.2 Representation of Social Identities: Caste, Class, Gender, Ethnicity, Minority
 - 17.5.3 Participatory Media to Achieve Human Rights
- 17.6 Let Us Sum Up
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- 17.8 References and Further Readings
- 17.9 Check Your Progress: Possible Answers

17.0 INTRODUCTION

Media is considered an essential pillar of democratic state because it provides people opportunities of participation by informing and educating them about their rights and duties. Media has been the catalyst of human rights movements ranging from slave-trade and racial discrimination to the plight of refugees. However, at times, the propagandist media becomes a tool to gain/retain power by a few. The struggle for political-economic-social equality vis-à-vis power, thus, necessitated the need to formally define human rights. Although, philosophy of human rights is universal in approach, yet the human rights of individuals/communities remain contextual due to cultural and social diversity. Here, it is equally important to understand the diverse media processes operating in the diverse contexts.

In this Unit, we shall discuss the historical, theoretical and constitutional aspects of human rights from global and Indian perspectives and examine media representation of human rights issues for a better understanding of society, human rights and media.

17.1 LEARNING OUTCOMES

After reading this unit you should be able to:

- recall the history and development of human rights;
- describe the conceptual and legal frameworks of human rights;

- discuss the emerging issues related to media, society and civil liberties; and
- analyse the media processes in relation to the representation of human rights issues

17.2 HISTORY AND DEVELOPMENT OF HUMAN RIGHTS

Jack Donnelly (2003) explains in his seminal work *Universal Human Rights in Theory and Practice* that the ‘traditional’ societies did not have formal human rights frame, yet they had politically and legally well-defined systems of duties, justice and human dignity. We find the traces of the demand for and attainment of human rights from the ancient history. Various human rights were formalised and institutionalised in different political structures (including monarchies) in various parts of the world with Magna Carta (Charter), Renaissance and Enlightenment periods being the most recognised milestones in the history of human rights.

Human Rights and Ancient History

The Babylonian King Hammurabi (c1810-1750BC) issued a set of public laws known as, “Hammurabi’s Codes”. These laws included almost every sphere of life ranging from civil laws, marriage and family to property codes, minimum and fair wages. On the principle that strong must not harm the weak, these codes defined crimes and punishments. Though, Hammurabi’s codes are first known case of human rights, yet those were not based on equality. For example, it was ‘an eye for an eye’ as a punishment for the crime committed in the same class of people, however, the punishment for the same crime committed by elite class on a weaker class, such as slaves and women, was quite less. Moreover, the punishment for the proved crimes of slaves and women were gruesome and could not be called as ‘justice’. Interestingly, after almost 1215 years, a new benchmark of human rights was established on the same soil when Cyrus II, the King of Persia conquered Babylon in 539 BC. His rule in Babylon and a baked clay artifact known as “Cyrus Cylinder” is well recognised as a symbol of religious freedom and tolerance to multiculturalism. He set the Babylonian/exiled slaves free to return to their homes and practice their religion and cultures.

Similarly, the Indian history witnessed humanitarianism and universalism as core philosophy during the reign of Mauryan King Ashoka (268-232 BC), who devoted his whole life to non-violence and Buddhism after the War of Kalinga (262 BC). Important historical evidences, “Edicts of Ashoka” with 33 inscriptions on pillars, boulders and cave walls describe his policies related to religious tolerance and egalitarianism.

Medieval History and Formation of Human Rights

In the year 1215, the “Great Charter” i.e. the Magna Carta in England declared the law of land as supreme for the first time. With establishing ‘right to justice and fair trial for all free men’, even the king had been brought under equality before law (‘unfree’ peasants were not a part of it!). It eventually gave way for the petition of right (1628) to demand supremacy of English Parliament against the King and further, the Bill of Rights (1689) to declare the “political and civil rights, including the freedom to elect Members of Parliament, the protection of free speech in Parliament and that the king or queen could not interfere with the

law” (<https://vdocuments.us>). Following this, the minority rights to Jews were provisioned by the statute of Kalisz or Boleslaus de Pious in Poland in the year 1264. Interestingly, in 1630s, Dutch jurist Hugo Grotius laid the foundation of international law to protect world citizens with the substantial treatise ‘The Rights in War and Peace’. Thus, Magna Carta became the foundation for UN Charter of Human Rights (UNCHR).

Reformation, Renaissance and Enlightenment: The Era towards a ‘Modern World’

The Renaissance in 14th - 17th century and the Enlightenment in 18th Century Europe is known to be the first wave of human rights movement for religious and civil liberties. With the philosophy of ‘natural rights’ the philosophers like John Locke (1632-1704), Voltaire (1694-1778) and Jean-Jacques Rousseau (1712-1778) proposed the idea of human life and liberty, equality and independence. The European wars of religion from 14th century onwards set the motion for demands of equal rights in religious-cultural and political spheres and aggravated with the civil wars in England (17th century). Protestant Reformation started by Martin Luther in 16th century Germany encouraged common people to question the religion. Consequently, German Peasants’ War against Holy Roman Empire resulted in “Twelve Articles” demanding “Swabian League”. Similar wars in France, Spain and other parts of Europe were important movements that led to religious tolerance and political decentralisation. The period was important to understand the role of press as well. It was through the technology of printing press that Martin Luther could take the translated bible (From Latin to English Language) from confinement of church to the common people and it could get the massive response. You will be surprised to know that the comic strips gained popularity from this period onwards!

The Modern History: From French Revolution to Universal Declaration of Human Rights

Philosophers such as Thomas Paine circulated the ideas of equal rights (The Rights of Man) and reason (The Age of Reason) throughout the Age of Enlightenment. In 1789, the Declaration of the Rights of Man and of the Citizen made a way for participation of all (excluding women) in civil and political life an inalienable right of “all born equal and free” in France.

The US Bill of Rights proclaimed the freedom of speech, press and assembly in the first 10 amendments to the American Constitution. In America, a massive movement for human rights was led by leaders from different fields. William Lloyd Garrison, journalist and abolitionist led Anti-slavery campaign and regularly published pieces related to “the great cause of human rights” in his newspaper The Liberator. Another important step in those war-struck times was the Lieber Code, the instruction for the US Armed Forces signed by the US President Abraham Lincoln in the USA (1863) for “humane treatment of prisoners of war”. Simultaneously founding of the International Committee of the Red Cross (1863) and Geneva Conventions (1864-1977) are also important in this regard. A parallel movement for women rights started in 1848 with Woman’s Rights Convention in New York and women were fighting for their civil and political rights in other parts of the world. Kate Sheppard led woman’s right movement in 1893 in New Zealand became the first success when women were given right to vote in parliamentary elections.

It is interesting to note that imperialistic world powers indulged in the most socio-economic exploitative practices with colonisation, slavery and racism, reconciled to a demand for an 'equal world' in their homeland. For example, Britain, engaged in colonising the countries of Asian and African continents till the Second World War, passed the Slave Trade Act and Slavery Abolition Act in the years 1807 and 1833 respectively, in Britain.

Violation of human rights in the World War I compelled the world leaders to initiate the foundations of the League of Nations in 1919; it was the World War II with technological advanced weaponry and atomic bombing on Hiroshima and Nagasaki, Japan, which had been realised as the threat to whole human life and the United Nations was formed in 1945 with a purpose to prevent wars in future, to settle disputes through negotiations and peace talks and improving human welfare universally. A founding stone of international humanitarian law and human rights law, the Universal Declaration of Human Rights (UDHR) came into being in 1948, followed by international covenants such as the International covenant on Economic, Social and Cultural Rights (1966) and the International Covenant on Civil and Political Rights (1976) as part of the International Bill of Human Rights. The world's largest human rights organisation, Amnesty International was founded in 1961 followed by British lawyer Peter Benenson's campaign.

While colonised nations were fighting for political independence, Mahatma Gandhi became a role model of humanitarian non-violent movement and emerged as a crusader for human rights. Similarly, Dr. B.R. Ambedkar built a movement against caste-based discrimination and human rights violations and became a force for institutionalisation of affirmative action for the weaker sections of society through a written constitution. Thus, we find some concrete actions along with the evolved philosophy and development of historical events that collectively contributed toward the present form of human rights all over the world.

With the three generations of citizenship and human rights movements as described by eminent sociologist T.H. Marshall and later, Jurist Karel Vasak, the history of human rights can be summarised as:

- Emergence of civil and political rights (individual liberties)
- The development of social and economic rights (social welfare)
- The collective/solidarity rights (sustainable development, peace and fraternity at global level).

Check Your Progress: 1

Note: 1) Use the space below for writing your answers.

2) Compare your answers with those given at the end of this unit.

1) Why are the Hammurabi's Codes considered as 'partial' human rights?

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- 2) List three human rights movements/landmarks from medieval world history.

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- 3) Discuss the contribution of French Revolution in Human Rights History.

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17.3 HUMAN RIGHTS: CONCEPTUAL AND THEORETICAL FRAMEWORK

The “Rights of Man” was not all-inclusive during the ancient and medieval world history. However, it proved to be a pathfinder to conceptualising an ‘equal and just’ world and thus, we arrived at the definition of human rights as propounded by the United Nations i.e., “Human rights are rights inherent to all human beings, regardless of race, sex, nationality, ethnicity, language, religion, or any other status.”

The UN’s concept of human rights is based on ‘universal’ and ‘egalitarian’ ‘natural rights’ or basic rights emphasizing upon ‘individualism’. We will discuss various perspectives of human rights in terms of action or practice i.e. ‘positive’ and ‘negative’ rights; the ‘duty’ and ‘responsibility’ approach to understand the full meaning of ‘rights’ as a part of ‘society’ based theories; along with individual perspective in this section. The torch-bearers of human rights propagated principles of ‘liberty, equality and dignity’ that can be described as the soul of human rights born out of these theories.

17.3.1 Different Theories of Rights

Individual and ‘Society’ Rights Theories

The classical philosophers Plato and Aristotle proposed the idea of ‘universalism’ and ‘justice’. However, it was English philosopher John Locke whose idea of ‘natural rights’ became the foundation of modern liberalism. He defined three elements of natural rights - life, liberty and property. However, philosophers like Immanuel Kant, Thomas Paine, Karl Popper defended the single attribute of individual freedom as human rights.

You can understand all the three elements with a single example of a new born baby. With the birth, a ‘baby’ comes in the world with the right to life; since ‘baby’ is a caste, class and/or gender neutral term, s/he enjoys right to equality at

birth; a baby moves, cries, smiles and expresses herself at will, hence the ‘life’ and ‘liberty’ are given to her by ‘nature’; the natural resources provide air, shelter and food for her that constitute ‘property’. However, in the later years, with community/caste/class/gender affiliations take place and power starts to play a role in his/her later life which mostly comes with a hold on economic resources. This situation is well explained by Rights theorists of 17th-18th centuries. Thomas Hobbes, John Locke and Jean-Jacques Rousseau considered natural rights as liberties confronted by individuals against each other when interests clashed.

Eventually, these incontrovertible rights of equality, justice and dignity were promoted by liberal economists and philosophers such as John Stuart Mill, Adam Smith and David Ricardo for decentralisation of power in individuals (citizens), groups, organisations, market and media instead of the State.

The second set of theories immersed into ‘society’ where individual is considered as a part of society. Theorists like David Hume hold human rights as social product developed through social processes. Based on Thomas Hobbes’ view that individuals in a society accept rules from legitimate authority in exchange for security and economic advantage, John Rawls developed the “Social Contract” theory. In French Enlightenment tradition, Jean Jacques Rousseau extended social contract theory to ‘general will of people’ while, Charles-Louis de Montesquieu (1684-1755) laid foundations of the modern political systems with the separation of power among three branches of state i.e. executive, legislature and judiciary.

Negative and Positive Rights Theory

A close scrutiny of the human rights provides another set of theories which is called as ‘positive and negative rights’ theory. Based on rights legislation and practice, negative rights are the individual liberties enjoyed through ‘non-interference’ by others. As Herbert Spencer asserts, “Every man has freedom to do all that he wills, provided he infringes not on the equal freedom of every other man” (cited in Boersema, 2011). First generation rights, also sometimes called “political rights” are essentially negative rights; for example, the right to vote. Positive rights are what Henry Shue calls as, “social guarantees against actual and threatened deprivations of at least some basic needs.”(1996:18). Those are affirmative action by state and society to protect individual rights. The second-generation rights, are predominantly positive or “welfare rights”, for example, education, employment, health care, etc. where State/government guarantees the fair opportunities of participation to the weaker sections of the society.

Duties and Rights

Italian philosopher Giuseppe Mazzini (Duties of Man) focuses on duties rather than rights of individuals. One individual’s right involves another individual’s duty and vice-versa. They are relative to each other. As David Boersema says, “Rights are a mode of regulating our behaviour”. You can understand the concept with the example of clean environment. Since right to life is dependent on good health, in order to protect that right, it is the duty of every individual to use clean energy mechanism towards a pollution free environment.

17.3.2 Critique

We all live in different social contexts, hence the ‘universal individualism’ proves to be limited in scope. Equally, the social theories fail to address individual

concerns due to structured social hierarchies and single perspective of western modernity (especially in relation to North-South or centre-peripheries debates). By taking individual as an “active agent” and development as “interdependent phenomenon”, we can understand the complexities in terms of “the three conventional dichotomies” offered by Jan Servaes and Chris Verschooten (UNESCO, 2008).

Tradition and Modernity: The concept of ‘modernity’ is mostly considered on western lines and it conflicts with the traditional values of cultures of third world countries. In such a situation, we need to work in a cohesive ‘observers’ and ‘participants’ culture where using our own experiences, we can compare, critically assess and amend the malpractices within the cultures. Thus, instead of discarding the tradition completely, we can point out the wrong practices and make people aware to remove those; for example, female circumcision, caste based discrimination, superstitions, etc. Journalists need to develop more inclusive stories by spending more time in the field with the locals; build an understanding of right and wrong of the traditions, rather than just relying for the stories on ‘external’ organisations.

Universality and Relativism: Asian values of tolerance, harmony and consensus emphasise upon collective rights; as an alternative of ‘universal rights’. While the extreme universality and relativism lead to imperialism and ethnocentrism, respectively, legal scholar Upendra Baxi holds people and communities the primary authors of human rights. That means there cannot be a single solution for problems of similar nature everywhere. The context, the people, their values matter and we should look at indigenous traditions to seek answers thereof. However, you have to be cautious while judging the practices as right or wrong. The best way to do so would be to see that the practice in question should not be a breach of anyone’s individual right.

Individualism and Collectivism: The demand for ‘collective’ rights also emerged through anti-colonialist revolutions in Asian and African nations. Solidarity rights pertain primarily to certain collective concerns, such as peace, culture, development and ecological balance; while International Bill of Human Rights recognises only ‘individual’ rights. Here again we can take example of environment protection. By promulgating the Asian cultural philosophy of worshipping nature, we can revive various eco-friendly traditions towards nature conservation.

Check Your Progress: 2

Note: 1) Use the space below for writing your answers.

2) Compare your answers with those given at the end of this unit.

1) List the most important elements attached with individual human rights.

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- 2) How do 'negative rights' form the basis of individual human rights?

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- 3) List the demands raised under 'collective rights movement'.

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17.4 HUMAN RIGHTS: LEGAL FRAMEWORK

When the war-torn world realised the need of peace during 1940s, the world leaders initiated the process to recognise human rights at a global platform of the United Nations Organisation in the form of the International Bill of Human Rights. The Bill comprises of the Universal Declaration of Human Rights and international covenants on economic, social and cultural rights as well as civil and political rights. It stands on the core principles of the Human Rights framework of universality, indivisibility, participation, accountability, transparency and equity and non-discrimination. It provisions for human dignity, equal and inalienable rights to promote freedom, justice, peace and hence, social change in the world.

17.4.1 Universal Declaration of Human Rights

The UN Charter of Universal Declaration of Human Rights is an amalgamation of the total philosophy of human rights. The Articles range from individual-natural-negative rights and social-state-responsibility based positive rights to individual duties. Thus, they are fully centered on right to life and dignity and protection of it. These can be classified as below:

- i) Birth/Natural Rights (Article 1-5): Right to equality, life, liberty, security, dignity; right against slavery and cruelty
- ii) Positive Rights provided by the State (Article 6- 12): Right to equal protection of the law; and other related laws to justice
- iii) Personal liberty based rights (Article 13-20): Right to privacy, honour; freedom of movement, residence; nationality; Right to marry, have a family, property; freedom of thought, expression, religion
- iv) Political Rights (Article 21-22): Right to freedom of peaceful assembly/ association; right to take part in government

- v) Social, Economic and Cultural Rights (Article 23-28): Right to social security, employment, economic security, education, cultural life, social order
- vi) Duties (Article 29-30): Duties of individuals and state, respectively to keep environment suitable for enjoyment of human rights by all in society.

17.4.2 Indian Constitution and Human Rights

The Indian Constitution significantly assimilated all, negative and positive human right in Part III and IV, providing for the Fundamental Rights and the Directive Principles of State Policy. As enacted, amended and interpreted by Courts, the Fundamental Rights (Article 12-35) advanced the avowed goals of the Constitution, namely, Secularism, Socialism, Equality and Justice. They ensure freedom of thought, expression, belief, faith and worship, Equality of status and of opportunity, fraternity and dignity of the individual. According to Dr. B. R. Ambedkar, Fundamental Rights are inalienable and constitutional. Rights of individual are abridged only with 'due process of law'. Articles 14, 15 and 16 of the Constitution mandate, therefore, equality before the law and equal protection of the laws without considerations of religion, race, caste, sex, and descent, place of birth or residence."

The Directive Principles (Article 36-51) enlist the desired social transformation through affirmative action from the State; such as - to secure and protect social order and justice (Article 38); to ensure fair distribution of means of production and economic resources (Art. 39b and c); to provide for decentralisation of authority and governance (Article 40), economic security (Article 41), education and health (Article 45, 46 and 47).

Included in Part IVA (Article 51A) of the Constitution, are the Fundamental Duties of the citizens to 'promote the spirit of nationalism and to uphold the unity of India and that of individuals. Though, both, Part IV and IVA are obligatory in nature and are "not enforceable by law".

The National Human Rights Commission was constituted by the Protection of Human Rights Act, 1993 enacted by the Parliament (with two amendments in 2000 and 2006). The act also provisions to constitute the State Human Rights Commission in various states and Human Rights Courts for protection of human rights of every individual in the country.

Activity-1

Visit the website: <http://nhrc.nic.in>, go to the 'press releases' in media section. Observe the top three press releases, analyse the role of National Human Rights Commission in circulating the action and policies of government in the area of human rights.

Check Your Progress: 3

Note: 1) Use the space below for writing your answers.

2) Compare your answers with those given at the end of this unit.

1) Fill in the blanks

- Article 6-12 of Universal Declaration of Human Rights provision for Right to and other related laws to justice.

- The Fundamental Rights advanced the asserted objectives of the Constitution, namely,....., and
- Directive Principles and Fundamental Duties constitute a set of positive rights on part of and respectively.
- The National Human Rights Commission was constituted by the Protection of Human Rights Act in the Year.....

17.5 MEDIA, SOCIETY AND HUMAN RIGHTS

As an important social institution media plays an essential part in everyday life of modern societies. It has become a cultural practice where people interact with media in one form or the other. Media content informs, educates, socialises people and gets reflected in their behaviour. It builds perceptions about individuals, groups, classes and communities in societies. Because of this power of media, it has been realised as a tool to create awareness about ‘wrongs and rights’ of social behaviour and achieve human rights toward an egalitarian-just society.

17.5.1 Democratic Polity, Mass Media and Processes

We can understand the relationship between media and political systems through ‘power’ theories and ‘normative theories of press’. While power theory states how any political system cannot sustain itself on coercion and needs ‘consent’ of people eventually; the normative theory of press describes different systems of media working towards this ‘consent’ in different political structures ranging from authoritarian to democracies.

Based on varied purposes of state media (responsibility/propaganda) and commercial media (profitability), the news does not reflect the whole truth, but it takes the facts or ‘some aspects’ and thus, ‘signifies’ the event. As Walter Lippmann (1922) asserts that, “news is not a mirror of social conditions, but the report of an aspect that has obstructed itself” (cited in McQuail:2005:375), ‘news’ is not absolutely objective or intentional. This can further be understood through the explanation of newsgathering processes such as ‘filtration’, ‘gatekeeping’ and ‘agenda-setting’, where media organisations structure and frame the stories to give them a perspective. Therefore, it is pertinent to understand these media processes:

Framing: To provide a structure to the news, it is given some ‘angle’ or ‘theme’. In doing so, the journalist select certain facts with prominence. Frames define problems, chalk out causes, make judgments and suggestions in one directional manner and thus, provide intended meaning to an event. We can borrow Marcel Danesi’s “textual devices” to understand the framing of content (2002:73):

- Strategic repetitions of certain words.
- The use of compact phrases set in eye-catching patterns (vertically, horizontally, diagonally).
- The use of contrasting font styles and formats, along with supporting illustrations.
- The creation of slogans and neologisms designed to highlight certain aspects of the content; for example, the slogan “War on Terrorism” used by American media after 9/11 attacks in the USA.

- Media, thus, provide a frame of events which echoes the viewpoint of the sources used or states the national context. For example, the coverage of war/conflict by various international channels shows the event coverage from their own frame of reference.

Priming: The news is provided with a meaning also through placing or ordering the stories according to the ‘inverted pyramid’, i.e. from most important to lesser important. This function is called priming. When the stories are primed, they imply different meanings, being at ‘different positions’.

In this background, the search for enjoyment of human rights by all individuals takes us to what Graham Murdock cites as the “communicative rights”. These “rights in relation to the production and circulation of public knowledge and public culture - are central to any definition of full citizenship in a complex democracy” (Murdock: 1994:3)

17.5.2 Representation of Social Identities: Caste, Class, Gender, Ethnicity, Minority

Often, the mainstream media is criticised for representing ‘only politics’. Therefore, in order to understand the current structures of representation, we require an understanding of the dynamics of institutional structures and social identities. On this premises, the present section will focus on various social identities rooted in Indian society and their representation in mainstream media in relation to the human rights issues.

Caste is an embedded system of social stratification in Indian social structure. It has been defined by various sociologists as “hereditary, localised endogamous group”. With regional variations, the caste structures developed in ascribed occupational roles based in Varna System. It became exploitative in nature with unbreakable caste hierarchies; for example, Dalit atrocities. However, according to M N Srinivas (1966), the dominance of caste in one local area or village unit rests on various factors, such as, the degree of their population along with their economic and political strength. The affirmative action by the State lead to decline in the caste based exploitative practices and increased mobility in the social sphere. In the political sphere, the “scheduled caste” became an issue to give birth to new political parties and to mobilise people by the existing ones.

While the complexities of ‘exploitation of lower castes by the high castes’ have been represented in the narratives of films like, Jagriti, Deeksha, Rudaali, the real issues went missing in the news media. It has been observed that only the ‘scheduled caste politics’ is covered by the newspapers and news channels mainly in relation to the ‘reservation issue’ and ‘electoral politics of vote bank’ without their contexts like, history, demography, social or economic background. You will find a lot of caste-based stories in newspapers highlighting the word ‘Dalit’. But, unfortunately you will not be able to find out the context in absence of backgrounders and follow-ups.

Class is a Marxian notion based on economy. According to the concept given by Karl Marx in terms of Base (economy) and Super-structure (all other social institutions), the societies from historical times are structured in two classes of ‘haves’ and ‘have-nots’. In complex and diverse social structures in India, the “backward classes” have been attached primarily with “scheduled tribes,

scheduled castes and the other backward castes”. Here, it is not merely the economic condition but the social status of groups which define class. However, one can see wider class-divide in terms of rural-urban as well as urban-urban constructs majorly on economic basis.

While films of 1950s to 1970s depicted the class-conflict in society by showing the power relations among industrialists and workers, mostly ending with the workers’ victory, by the late 1980s, the plot or theme was no more visible in the films. While it never became the part of narrative in other entertainment based genres such as daily soaps, the news media covered the issues (especially the protests and strikes) from the industrialists’ perspective. On the other hand, the human rights issues as ‘poverty’ get diluted when “human rights issues become ‘human interest stories’, forced to adhere to certain emotional clichés.” (ICHRP, 2002:6)

Gender is a social construct dividing man and woman on the basis of family, work and most importantly ‘power’ equations in society. Based on patriarchal structures in society, women universally have been treated as ‘second sex’ or others. There has been a long history of women movements to acquire political and economic rights along with social equality and there are various countries in the world where these movements are still on. While the ‘third gender’ i.e. transgender were rarely a part of gender discourse till recent years, the proactive role played by civil society, advocacy groups and the protective policies made by state seem to positively working in this direction.

An array of studies of women representation has been conducted. According to these, media including films, soaps and advertisements re-establish the stereotypes of patriarchal structures where women are confined to the private sphere. Laura Mulvey explains how women are shown as weak, delicate sex-objects and calls it ‘male gaze’ of camera where women are passively submissive while men are the real actors. In *Whose News*, Kalpana Sharma and Ammu Joseph question the representation of women in news. It is observed that the news content which involves women in some capacity actually is framed in such a manner that the women rights never become the central issue even if they are covered by the media.

Ethnicity refers to the inter-relationships between ethnic groups. The word ‘ethnic’ is generated from a Greek word ‘ethno’ which means ‘nation’. In the plural societies like ours, various ethnic groups emerge on the basis of common characteristics like language, religion, region, race, caste, etc. At international level, ethnicity has been seen in association with nationality. Cohen (1974) defines ethnicity as a process of “interaction between culture groups operating within common social contexts”. However, when economic or political interests of these groups clash, they create tension among these groups and ethnic conflicts emerge. For example, in India, formation of State of Andhra Pradesh, and carving out of three states i.e. Himachal Pradesh, Punjab and Haryana out of Punjab province were the result of ethnic demands based on language.

While, the regional and ethnic concerns are missing in the mainstream media at domestic level, they catch the limelight as soon as the ethnic groups cross the borders as ‘refugees’. Recently, two such ‘crisis’ got attention of international media in terms of Syrian refugee crisis and Rohingya crisis.

Minority groups are usually low in numerical strength and have less control over resources than the dominant ‘majority groups’. In India, the minority groups are predominantly characterised on the religious basis. Though Indian minority is constituted of various religious groups such as Muslims, Jains, Sikhs, Parsis and Christians, their representation is relatively less in mainstream media, and the quality of the presentation is a question of investigation.

Activity-2

Identify one of the social identities in a newspaper of your choice and analyse their news coverage as discussed in this sub-section.

17.5.3 Participatory Media to Achieve Human Rights

When mainstream media are part of the process of normalisation of inequality and “legitimate reports of bad news fail to explain causes; reports often stigmatise or stereotype local actors and societies as a result” (ICHRP, 2002:9), participatory media is making its mark to sensitise the marginalised groups towards their human rights and building a bridge between the remote areas and governments to bring a real change on ground. Mostly civil society and non-governmental organisations led participatory media is observed to work upon five policy areas that are pertinent to democratic communication rights: access to information, the availability of information, media competency, dialogue and privacy (Nieminen:2018). This is based in all forms of media ranging from newspapers, community videos, community radio and online portals.

There are newspapers started by NGOs and individuals to spread awareness and make people able to achieve their human rights ranging from gender rights to child rights in various areas of the country; for example, Khabar Lahariya. These newspapers train and engage local people in reporting and editing. You will be surprised to know that in a village of Dehradun, children bring out a handwritten newspaper on a weekly basis! However, due to limitation in terms of literacy and economic constraints, most of such newspapers remain confined to a small area.

Since radio is still the major medium of information accessible in rural India, the community radio through community engagement is a crucial and effective way to raise important issues.

Radio Mewat, Henvalvani Community Radio and Gurgaon ki Awaz, for example, provide a platform to voice their struggles and human rights violations such as, gender violence. These community radio stations also conduct sessions to create awareness against superstitions so that the people do not interfere in the human rights enjoyed by individuals. Interestingly, Radio Mewat is funded by the central government, and it reaches 168 villages and serves a population of about 5.5 lakh. There are initiatives, community radios and programmes designed by government educational institutions including NCERT and IGNOU where we observe public participation toward widening and strengthening the sphere of human rights.

Sangwari Khabariya is another example of how participatory videos are used to bring social change in society. Sangwari Khabariya is a collective of children aged 15-18 years being engaged with media tools and trained in Citizen Journalism

as part of the AEMT (Adolescent Engagement with Media Tools) initiative of UNICEF. All the children are school drop-outs and belong to some of the most marginalised tribal communities of northern Chhattisgarh state of India. Deprivation, ignorance, abject poverty are common features of the region that is the habitat of these children. The project aims to make these children aware of their rights and entitlements and empower them to voice their concerns through the medium of video. For the past three years, these children have been producing short news stories on issues related to child rights and their communities. (Tripathi: 2018). You will read more about the participatory or alternate media in Unit 16 of this course.

Activity - 3

Watch any of the following videos:

Sangwary Khabaria Videos

https://www.youtube.com/watch?v=llxg9_ZIF8c <https://www.youtube.com/watch?v=fxrZX5beAgU>

Skymet Weather's initiative:

#HelpTheFarmer https://www.youtube.com/watch?v=Qfs_mvPA-vQ

Analyse the efforts of civil society groups in creating awareness on human rights issues in India.

17.6 LET US SUM UP

In this unit, we examined the evolution of human rights debate. When a demand for equal rights was emerging in the age of Renaissance in European countries and America, India was also witnessing the philosophical path of humanitarian values. We observed how theoretical discourse on human rights takes us to the understanding of individual 'natural rights' as well as collective rights. The human rights theories also emphasised upon the need to see responsibilities/duties as a part of rights and also talked about 'non-interference' based negative rights and 'action' based positive rights. These rights can be categorised into three generations of human rights i.e., the first, civil and political rights; second, economic and socio-cultural rights; third, collective rights for universal peace and sustainable development.

The international organisations with a large number of countries came together to legalise and universalise the human rights toward a peaceful, egalitarian global society with individual universalism at core. However, there are complexities involved in realising these rights in full by all. These include dichotomies in relation to the tradition versus modernity, universality versus relativism as well as individualism versus collectivism concerns. The international, national and regional authorities, such as United Nations, National Human Rights Commission and state legislative bodies, through policies and affirmative actions are creating more chances of upward social mobility and economic and political participation, yet there are divides based in terms of caste, class, gender, ethnicity and minority. While public service broadcasting is creating awareness among people on human rights issues; civil society and NGO based alternative/participatory media is reaching out to people in this direction, mainstream private media is yet to take a step.

17.7 KEYWORDS

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17.8 REFERENCES AND FURTHER READINGS

Enlightenment: A philosophical movement in 18th century Europe to promote reason and science against religious supremacy and control.

Media Representation: The way media present various aspects and social identities, such as gender, caste, class, race, etc. to audiences.

Natural Rights: These are the basic rights which individual acquire at the time of birth by nature or God and therefore, these are inalienable.

Negative Rights: These rights seek individuals not to 'act upon' or 'interfere' in the enjoyment of human rights by other individuals.

Positive Rights: These rights ask individuals or State to 'act' or 'pay duty' for the enjoyment or protection of enjoyment of human rights of all individuals.

Social Stratification: The hierarchical division of various social groups in society that define social positioning and status.

17.9 CHECK YOUR PROGRESS: POSSIBLE ANSWERS

Check Your Progress: 1

- 1) The rights pronounced under Hammurabi's Codes were confined to the elite classes and high religious groups. Women and men from lower strata of society were deprived of these rights, hence these codes are considered partial human rights.
- 2)
 - a) Protestant Reformation started by Martin Luther in 16th Century Germany;
 - b) Renaissance in 14th-17th Century Europe;
 - c) Proclamation of Magna Carta in England in 1215.
- 3) The French Revolution (1789) defined the universal rights of man. It remained influential in the Declaration of the Rights of Man and of the Citizen, 1793 that marked the role of governments in recognising and securing the individual rights of liberty, equality, security and fraternity.

Check Your Progress: 2

- 1) Some important elements attached with individual human rights are: Life, liberty, equality and dignity of an individual irrespective of class, caste, race, gender affiliations.

- 2) Negative rights ask individuals not to ‘encroach’ or ‘revoke’ the rights of any other individual. Thus, the negative rights by ‘non-interference’ become instrumental in guaranteeing inalienability of human rights of all individuals.
- 3) The collective rights movement seeks fraternity at the global level. Started against “structural injustices” in terms of North-South or center-periphery divide, the third generation of rights movement is seen as anti-colonial revolution and demands for the development of new social and economic rights to sustainable development, peace and healthy environment.

Check Your Progress: 3

- 1) Equal protection of the law
- 2) Secularism, Socialism, Equality and Justice
- 3) State; citizen 4)
- 4) 1993



UNIT 18 MEDIA AND CHILDREN

Structure

- 18.0 Introduction
- 18.1 Learning Outcomes
- 18.2 Media, Social Media and Children
- 18.3 Children and the Significance of Provisioning Care
- 18.4 Positive Impact of Media on Children (Print and Digital)
- 18.5 Negative Impact of Media (Including Social Media) on Children
- 18.6 Digital Divide and its Impact on Children in India and other Parts of the World
- 18.7 Let Us Sum Up
- 18.8 References and Further Readings
- 18.9 Check Your Progress: Possible Answer

18.0 INTRODUCTION

Media, including social media, become an indispensable part of human life. Children, adults, young, old and of all genders use various kinds of media. Media includes mainstream media like print and television, and social media. Humans access social media through their mobile phones. Mobile phones become like human organs in the 21st Century. People can live without food for a few days, and they cannot leave their mobile for a minute in the 21st Century. Children are also using various kinds of media extensively. Usage media by all age groups are given in this Unit. Human beings are not aware of mobile phones and their application 15 years before. The mobile phone and social media become part of their life in the globalised world. There are debates about the positive and negative impacts of media on children. In this scenario, it is pertinent to ask the following questions.

Well, Are these applications that have come into the life of human beings, especially among children, as life-changing aspects in children's lives? What kinds of changes is it bringing to the life of children? Are they giving positive changes in the life of children? Are they impact the life of children in a negative manner? Do supplement in the print media for children improve the learning ability? Do we need to allow social media among children in a controlled manner? Let us try to find the answer to all these questions in this Unit.

18.1 LEARNING OUTCOMES

After studying this Unit, you would be able to:

- Know the social media, digital media and its spread among various group, especially among children;
- Analyze the positive and negative impacts of media on children;
- Provide suggestions to reduce the usage of media among children; and
- Importance of socializing and taking physical activities instead of exposing social media for long hours.

18.2 MEDIA, SOCIAL MEDIA AND CHILDREN

Media is the fourth pillar in society that gives news and information regularly to the people. It is a technical tool that consists of print, electronic and other version (TDK, 2017). Media is also a communication channel. People in society get connected through the medium of communication, and they regularly get information about the happenings of society through media. It is the responsibility of the press/media to report authentically and objectively. Any misreporting may lead to undesirable problems in society. In the media, Social media plays a significant role in the 21st Century.

Social media comes first in our mind when we think about how people spend their leisure time. A considerable percentage of population does access social media through devices like smart phones. They always carry smart phones wherever they go. The social media includes social network, blog, blogging, gaming, video and picture-sharing, iPods, iPhones, iPods, YouTube, Twitter, Facebook, Instagram, video editing or sharing apps, LinkedIn, so on and so forth. It has become very common and it becomes part of the everyone life in the 21st century.

“Social media, a type of digital media, is a system that is based on the content production and consumption of the participants and has different digital contents via links and content” (Andersson, 2016).

There are various definitions available to define social media. Based on the above said definition, we may conclude that Social media is a medium having various tools for multi mode of communication and many can be interacted and exchange information, share contents through multi way communications (Alzouebi & Isakovic, 2014).

“Social media is a key channel of communication in the society today and enables people worldwide to interact with each other with just the click of a mouse” (Lofgren, 2014).

It plays various roles in society, including education, entertainment and communication. It takes data from multiple sources and presents numerous forms for multiple people in the community and society. In the entire process, one must know the sources of data, the objective of data sources, forms of presentation, and presentation aim. There is a chance of misrepresentation of data to create certain kinds of opinion among people. Misrepresenting data with subjective and biased views to make opinion among people leads to partial views on society's issues, leading to long-term consequences. The narrow idea may form a strong opinion or belief among children. Data and information are presented in the form of cartoons, virtual games and their derivatives to the children. If the children get exposed to the data in the form of comics or cartoons and play virtual games for a more extended period, it may profoundly affect their minds. It may also create both positive and negative effects. The prolonged exposure to these media may distract children from their studies and physical activities. The more extended period of media exposure to the children reflects in their actions and speech. Sometimes, they speak like cartoon characters, and they may lose their childhood physical and mental growth.

In the Study conducted by Funk, Brouwer, Curtiss, and McBroom (2009), regarding the parents' belief about social media's influence, the results are as

follows. Ninety-nine per cent of the respondents answered. Among the respondents, 43 per cent believed that popular media might impact children for a shorter period, and 53 per cent think that popular media have a long-term impact on children. Television has more prolonged effects on children in various ways. (Kirkorian, Wartella & Anderson, 2008).

The Study pointed out the impact on children if exposed to digital media, including television, for long periods. Thus, the media content for the children should be reviewed and edited, and children should be taught to use social media tools very minimum period. We must make the children expose live experiences instead of getting experiences through gadgets. As we know, many of these devices and applications are not available ten years ago. (Graber & Mendoza, 2012).

Further, the availability of Smartphone and computers changed communication throughout the world. People can communicate with anyone at any time by clicking a button or pressing the button. They can make both audio and video calls. The availability of various Smartphone applications makes people creative and develops audio and video content and uploads the same. According to Kahveci (2015), the development in the communication field further penetrated educational institutions. People, irrespective of their age, spend lots of time communicating through smart phones and social media.

Research on groups using social media applications and having mobile devices revealed that roughly one out of ten children by age five get a mobile device, such as a Smartphone. Therefore, youths define as the new digital natives in the modern age (Dotterer, Hedges & Parker, 2016). Children at the age of ten are able to record the video and upload the YouTube and run their own You Tube channels.

Top Ten Child You Tubers- https://www.youtube.com/watch?v=HSuWZHR_P8I

We also explain the role of media in educational institutions through data and case studies.

Case Study 1- Pandemic and Learning through Smartphones by Children

Covid 19 and the subsequent implementation of the complete lockdown in many countries led schools' closure indefinite periods. Schools shifted their teaching methods, and they use various Information Communication tools and media to reach children and continue their teachers. In this, smartphones and computers play a significant role. Smartphones and computers gave massive benefit to learners and teachers. It helped the teachers to continue their lessons and the learners to continue their learning activities. Online platforms like Google Meet and Zoom became part of the life of the students. The School and colleges quickly shift their mode of teaching online after the pandemic. We need to see the accessibility and availability of mobile phones, laptops and internet services to all children. As per existing literature, accessibility, availability, and control are essential. Internet services may be available, but do all children own and control mobile phones and laptops to listen to India's lectures?

As per the survey conducted by the University of Hyderabad in the wake of the Covid -19 crisis, only 50 per cent of the learners had access to laptops, 45 per cent could able to access the internet frequently, and 18 per cent of the learners didn't have access to internet facilities at all. (UoH Herald, 2020). The above

study reflected the current status in India. We need to have regular uninterrupted internet services required to attend classes online. The existing studies pointed out the breakdown of internet services in urban as well as rural areas. The existing patriarchal relations and socialisation process made girls learners more vulnerable in the digital world. Social institutions like family expect girls to support mothers and women in the family to help domestic work. There may be unequal access to mobile phones, Laptops and internet services to girl students. The domestic space already divided based on gendered norms. When Covid 19 hit India, the Ministry of Education, University Grants Commission (UGC) and other departments in India's Government regularly stated to use the online space for uninterrupted teaching learners. Of course, the Ministry of Education facilitated schools to use all online areas (Businessworld 2020).

Case Study 2 Teaching coding for the children

Education makes a particular person reason, and It helps the individual learn skills, providing opportunities to earn and economically proposer. In the era of the 21st century, children pressured to learn computer coding along with school education. Here we need to understand whether is it necessary to learn computer coding at a young age. If they don't know to code, are they lacking behind others? The New Education policy introduced by the government in 2020 proposed to teach coding in the 6th Standard. Coding is nothing but writing a language of software. Children expect computer language at the age of 10. They are learning coding at the early age of childhood expect the children to improve their computational and creative thinking. Due to lockdown because of Covid 19, may online applications emerged to teach coding to children. Many of these online platforms promised to make children excellent coding, ensuring that their children become entrepreneurs and scientists. Many news items appeared in the newspaper that seven-year-old created sign language application, and ten years old made the safe zone app, User interface, space teach and simulation. After the 8th Standard, learning coding helps the children to develop the game application.

Is it necessary to make children learn to code? Coding may be essential, and it may not be compulsory. One must allow children to learn and grow on their phase. We should not make children memorise coding techniques at an age without understanding what they are doing. Secondly, like coding, each child may have unique learning abilities like singing songs, excelling in mathematics, writing beautiful, photography, and many more. We should not make everyone learn coding at a young age; If we make children learn coding compulsory, it may increase children screen time. Children are already learning their subjects online. The computer is changing fast. If the children learn coming at ten, it may get obsolete by the time they reach adulthood.

Reference <https://www.youtube.com/watch?v=J1j1ol6Vev4>

18.3 CHILDREN AND THE SIGNIFICANCE OF PROVISIONING CARE

It is essential to provide the proper environment for the children to reach their goals to exercise their potential. This makes the country address the rights of the children and achieves sustainable development goals. Evidence in the Lancet series advancing Early Childhood Development (ECD) from science to scale

(Lancet, 2017) highlights “the profound benefits of investing in ECD for learning, productivity, health and social cohesion along the life course. The series highlighted the critical importance of the early years and coined the term ‘nurturing care’ as a central tenet of what is required to achieve optimal development, namely health, nutrition, security and safety, responsive care giving, and early learning opportunities”.

In the year 2018, The World Health Organization (WHO), United Nations International Children’s Emergency Fund (UNICEF) and the World Bank group published “The Nurturing Care Framework for early childhood development” (WHO, UNICEF & World Bank Group, 2018) at the World Health Assembly in 2018 to provide a roadmap for action. The Framework talks about the significance of formulating necessary policies and interventions to improve children’s lives and to achieve Sustainable Development Goals (SDGS). Nurturing care is characterized by a stable environment that promotes health and optimal nutrition, protects children from threats, and gives them opportunities for early learning through affectionate interactions and relationships. It points out that the government and society must accept the significance of nurturing care for young children. The Framework gives guiding principles, strategic actions and ways of monitoring progress.

ECD refers to the process of cognitive, physical, language, temperament, socio-emotional and motor development of children that starts at the time of conception until eight years of age. As per ECD process, the early years of child development is crucial because the brain develops rapidly during that period. The care must be given during that period. According to the Lancet Study 2018, fetus and child are sensitive to interventions in the earlier period. Thus once must be sensitive towards them (Lancet, 2017). By looking at the scientific evidence, policymakers must formulate necessary policies to support parents and caregivers by providing essential resources and support structure. The health sector plays a crucial role in addressing women’s needs, men and children’s maternal health, childcare, newborn care, and child health. In the areas of children’s brain development; it is the media’s responsibility to provide scientific information to the caregivers and nurturers. The WHO provided guidelines related to Reproductive, maternal, newborn and child health (including nutrition, caregiver mental health, HIV prevention and care, and prevention of non communicable diseases), refer to the importance of early childhood development. Along with that, WHO gave responsive care giving guidelines for early childhood development and learning, including nutrition, environmental health, prevention of childhood illness, the significance of physical activity, and preventing violence. Their early childhood development grouped under seven categories there are as follows: a. Infant and young child feeding b. Responsive caregiving and opportunities for early learning c. Antenatal, pregnancy care and delivery d. Violence and injury prevention and support for children with disability e. Mental health f. Environmental health g. Neonatal care and the prevention and treatment of severe morbidity in young children h. Diet, physical activity and health

18.4 POSITIVE IMPACT OF MEDIA ON CHILDREN (PRINT AND DIGITAL)

There are some positive impacts of media on children. As we mentioned earlier, social media applications’ spread and usage are not seen in society ten years

before. Children get exposed to books and newspaper supplements for children in both English and regional languages. Newspapers designed supplements specifically by covering topics from science to religion, politics and quiz. Schools allot a period to make the children spend their time library, and they tend to read supplement newspapers meant for children and books. Teachers, parents and caretakers tell children to read newspapers to improve general knowledge of science, technology, politics and literature.

They also tell the children to read newspapers to improve their vocabulary. Reading newspapers and getting exposed to the same will undoubtedly improve their reading habit. Here we need to think about age-appropriate content for the children. According to Nidhi Arora who started children's newspaper in India

“When my son turned eight, it was simply a parent trying to ensure he gets a long term, analysis based view of the news. I wanted him to grow up to be a person who is both aware and unfazed,” the mother, who finds this skill lacking in a lot of youngsters today”.

According to Riddhima Krishnamurthy, who is part of the children's newspaper Robin Age published by Raj Arora opined that the significance of producing and child-friendly contents and children should be kept away from sensational news. It is the responsibility of the parents and caretakers to ensure providing age-specific contents.

- 1) Child-friendly Newspapers should be designed for the specific age group
- 2) The content of the newspaper should be presented for a specific age group.
- 3) It should be interactive by incorporating life values, puzzles, games, positive cartoon characters.
- 4) Subject like science, history, mathematics may be presented through story format
- 5) There should be negative news
- 6) Positive success stories in sports, eating healthy, cultivating good habits, showing concern towards animal, showing concern towards fellow children and elders, respecting elders parents and caretakers, caring trees, growing trees etc. must be presented through stories
- 7) The weight of the paper should be light, and size should be small.
- 8) Newspapers must conduct competition regularly to encourage reading habits.
- 9) Newspaper can encourage children to develop their content, and the same can be published.
- 10) Newspapers can form a reading club for the children

It is the responsibility of the elders to read newspapers for the children and encourage children to participate. Elders can fix a certain time daily to encourage children to read newspapers to particular time regularly.

Case Studies of Reading Club in South Africa

Reading clubs across South Africa share with us how they are using the bilingual “Nal’ibali reading-for-enjoyment newspaper supplements”. Clubs use them in different ways, depending on how many books and other resources they have and the age range. Here are some ideas they are giving to try in our locality or school:

The first page of the supplement has information regarding Story Stars. Volunteers in the club share these stories to make the children get inspired. Children encourage to make books for the club by taking pages from the supplement, and They also use longer story corners in the supplement to create a story card. The club will place the story cards in the decorated paper box in a particular corner of the club to attract the children to read. The newspaper children's club encourages younger children to create a lending library and reading club. Others can borrow books from the lending library. Older, as well as younger children, enable to make a small library at home. Older children invite their friends to their home library. The club encourages children to form a group to read loud based on their interests. They can borrow books and form as a group. One person in the group can read loudly, and others can listen. This will improve the listening habit as well as reading ability. Apart from reading, they are encouraged to involve in activities based on the stories they read. Story corner created in the club. Here children can tell the stories for others based on their reading. Children are encouraged to write books reviews. These experiences can be replicated everywhere in the world. In India, national as well as national dailies regularly bring supplements for the children.

Smart Phones and its Use for teachers and Children

- 1) It may help the learners to enhance their learning Capacity;
- 2) We can see the advantages of smartphones subject wise. Ex. Smartphones can create diagrams, structures, models through machine learning or artificial intelligence to enhance students understanding of biology, physics, chemistry and engineering. It will help in the listening and reading ability of the student in the language class.
- 3) It will be helpful for both teachers and students.
- 4) Students can get their doubts cleared by browsing the internet.
- 5) It may improve a student's independent learning capacity.
- 6) Educational videos are beneficial for learners. Apart from that, smartphones are useful in education through Web Surfing Instant Communication, GPS, Entertainment and data transfer.

18.5 NEGATIVE IMPACT OF MEDIA (INCLUDING SOCIAL MEDIA) ON CHILDREN

This section discussed issues concerned with mobile phones and other media like television and interactive media for long hours by the children. The study conducted by Munni Ray and KanaRam Jat on electronic media's effect on children brought thought-provoking results. It influences children and their health-related behaviour. It is difficult for children to distinguish between fantasy and reality. Prolonged exposure to television makes children unable to determine fantasy and reality. If they spend more time on television, they spend less time on cultural and other activities. When children exposed to media violence, they may end up behaving violently. Ray, et al.(5) from India reported that children exposed to violence through media had more unsatisfactory school performance. It impacts their psychosocial process, and they tend to socialise less with their peer groups.

Yama, et al.(7) described that some of the fears, tensions, bad dreams, and tendencies towards delinquencies of children result from frequent and regular exposure to murder-mystery movies and stories filled with violence and torture children view on TV and movies. There is a strong association between long hours of tv viewing and suicidal tendencies. So the content of the programme and the time for viewing television are essential. The study conducted by Hopf, et al.(10) showed that the direct correlation between watching horror and murder mysteries for a long time during childhood, the higher rate of expressing violence at the age of 14.

- 1) Long hours of social media and interactive media impacts the children's face to face interaction. Thus they lack the socialization process. Once they enter adulthood, they may not be able to socialize with their age groups. Sometimes they face loneliness. It affects their learning ability.
- 2) They may face psychological, moral and physical issues.
- 3) It affects the cognitive development of children and the academic performance of the children.
- 4) Media affects children eating habits. It influences the children in a gender differential manner. The media tried to project that girl should be thin and lean. Thus, Girl children may not eat healthy food to project themselves as skinny and slim and maintain their weight based on media expectation.
- 5) The current study pointed out the strong correlation between media exposure and smoking habits among young adolescents and grownup children. When India banned on-screen smoking in films and television programmes initially in Janaury1 2006, it faced controversies. The Delhi High Court lifted the ban on movies and Television on January 23, 2009. We need to do more evidence-based studies on the influence of media among children on smoking and food habits.
- 6) The study conducted in the year 1990 states that media too influence children on alcohol drinking habits. The study further says that 56% of students in class 5 to 12 get influenced by alcohol advertisements in the media, and they may get into drinking habit at the later stages of life. Girls children too get influences. The findings revealed that girls who had watched more hours of TV at ages 13 and 15 drank more wine and spirits at age 18 than those who had watched fewer hours of TV. The study further revealed that media influenced children to consume banned substances at the later stage of their life. There is a strong positive correlation between long hours of television watching and getting addicted to alcohol and other banned substances.

For Example, scary online games like Momo Challenge and Blue whale make children scared and harm the children. They try to interact with the remote unknown character, making children think that it is true. Another game Blue Whale Challenge was surface in 2013, and it drove the children to commit suicide. Several suicides, suicide attempts and other self-harming acts have been reported in many parts of the world including India because of few online games and few digital applications.

18.6 DIGITAL DIVIDE AND ITS IMPACT ON CHILDREN IN INDIA AND OTHER PARTS OF THE WORLD

We need to see the digital divide among children through accessibility, availability, and digital media platform control. Here, In this section, we are looking at the accessibility of digital media among children and the gender divide. We can try to find out the access of digital media among children in India through following data through the article published in the EPW engage (<https://www.epw.in/engage/article/why-online-not-way-forward-education-reading>).

Bheemeshwar Reddy A et al (2020) wrote “Analysis of the National Sample Survey Office (NSSO data on social consumption of education (2017–18) informs that only about 9% of students who are currently enrolled in any course have access to essential digital infrastructure, and such measly access is enmeshed with huge socio-economic and spatial disparities. Hence, the attempt to make online education an opportunity out of the Covid-19 crisis poses a serious risk of leaving many students, especially the socio-economically disadvantaged, (UNESCO 2020). Higher the socio-economic disadvantage, much lesser the access. Only 2% of students from the poorest income groups have access to computer with internet, only 3% have access to computer at home and 10% have access to internet through any of the digital devices. Students from Scheduled Tribes (STs) and Scheduled Castes (SCs) also have an equally measly access”.

The disparities in access are visible not only socio-economic but also regional—digital infrastructure and connectivity varies from state to state as well as between urban and rural.

Rajagopal Devara (2020) highlighted the “gender disparity in access to online education: India has among the world’s highest gender gap in access to technology. Only 21% of women in India are mobile internet users, according to Global System for Mobile Communications Association’s 2020 mobile gender gap report, while 42% of men have internet access (Civildaily 2020). The report says that while 79% of men own a mobile phone in the country, the number for women is 63% (Civildaily 2020). While there do exist economic barriers to girls owning a mobile phone or laptop, cultural and social norms also play a major part. The male–female gap in mobile use often exacerbates other inequalities for women, including access to information, economic opportunities, and networking”. (Civildaily 2020). Access to mobile phone differs various countries. The study conducted in Europe have different picture.

The study conducted in 2015 on mobile phones and the internet by children in seven European countries brought notable results. Sixty-nine per cent of the surveyed children across seven European countries were using mobile phones. The study also revealed that among 15 and 16-year-olds surveyed, 10 and 12 years were the most common ages first to receive a mobile phone. Two in three children who use a mobile phone have a smartphone. Thirty-four per cent of children surveyed use a tablet.

A similar study in 2016 involved Bahrain, Honduras, Japan and the Philippines. On average, 67% of children surveyed use a mobile phone. 52% of children use a tablet. Ten years is the most common age for children to receive their first

mobile phone. Eighty-five per cent of all children surveyed who use mobile phones access the internet on their device. Ninety-three per cent of children that use smartphones have downloaded apps, including 100 per cent of children in Bahrain. On average, over 80 per cent of children using mobile phones access social networking services on their phones, which increases to 93 per cent for children using smartphones.

Adolescents and young adults spend a significant portion of their day using their smartphones (Kumcagiz & Gunduz, 2016) as an intense and passionate means of communicating with their friends, transferring their experiences, and following the “daily progress” of others in social media posts. Most teens are actively engaged in using Facebook, Instagram, WhatsApp etc., on their smartphones. According to Gezgin (2018), around 80% of social media activities are carried out over intelligent mobile devices.

While the percentage of young users of smartphones and interactive media might vary from place to place, their use has become an indispensable part of the youngsters’ lives worldwide irrespective of geographical, social or cultural borders. The concerns expressed on the negative impacts of these harmful technologies, especially by early childhood clinicians, educators, and organizations that care about the young generation’s well-being, are disheartening.

18.7 LET US SUM UP

Children have easy access to mobile platforms, interactive media devices and print media irrespective of their age. It helps the children learn new languages, learn science and mathematics through models and virtually see animals and plants. It helps them to learn independently. It helps them clear doubts. Children Supplements in Print Media facilitates in improving reading habits, learn language etc.

At the same time, prolonged exposure to digital media brings equally harm to the children. It affects their eyesight, reducing the physical activities that lead to childhood obesity and other health issues. Children try to interact with unknown people through interactive media devices. Interacting with strange people may affect their safety and security. Experts advised the children to access media through parents, elders and teachers. Internet time should be reduced. They should not allow accessing all applications on digital platforms. Instead, they should be encouraged to print media. Parents should register their children’s name on the digital device with awareness about consequences. Children should not reveal personal information on the digital platform.

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18.9 CHECK YOUR PROGRESS: POSSIBLE ANSWER

- 1) Examine the role of both digital and print media in imparting education to the children
- 2) Analyse the print and digital media and their impact on children
- 3) “Print media is better than digital media. Print media enhances and facilitates children to learn and reflect” Comment.